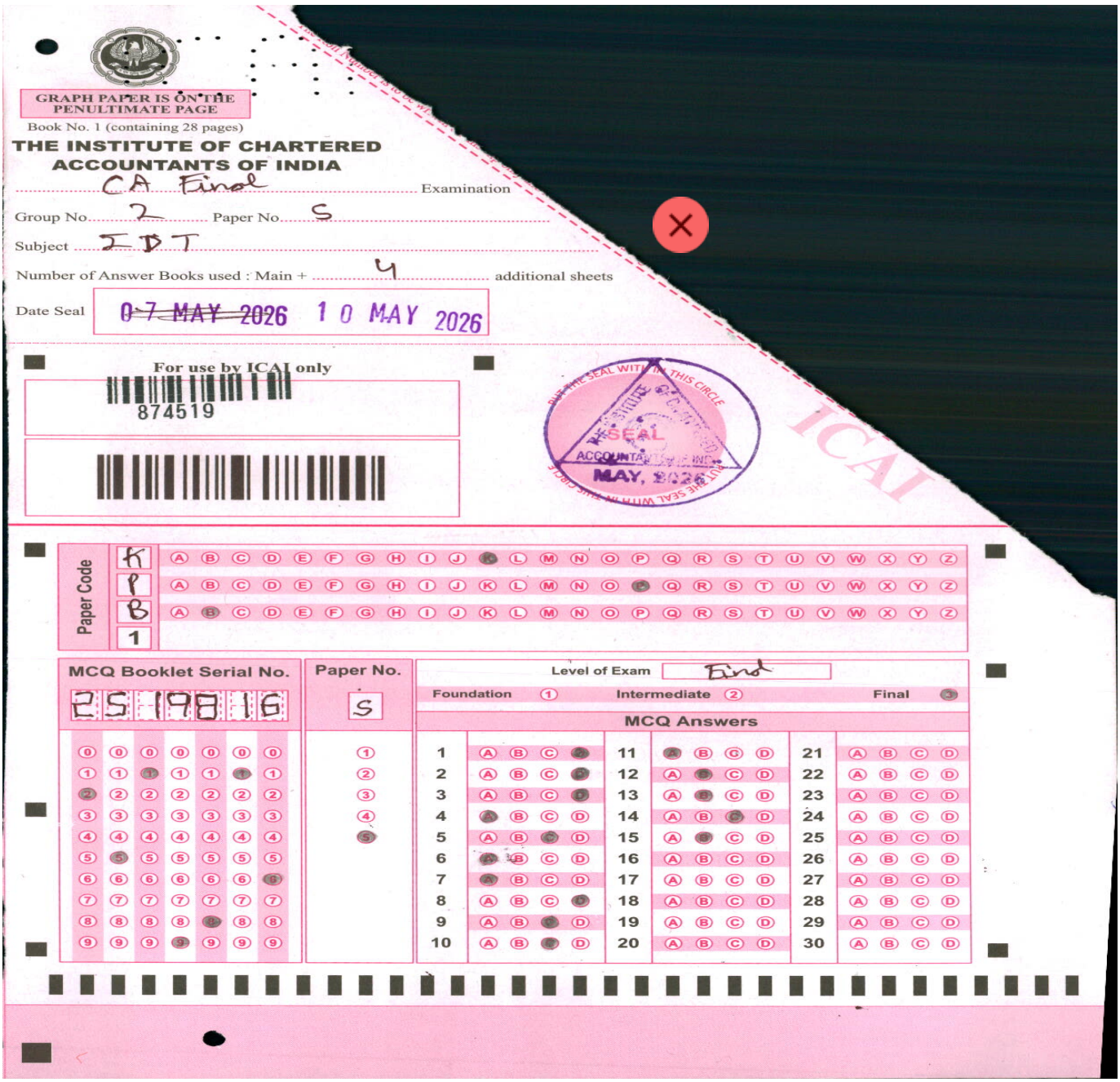
The Institute of Chartered Accountants of India

Code:	FN5IT874519	**Total Marks:**	70
Subject :	05 Indirect Tax Laws	**Marks Obtained :**	48



GRAPH PAPER IS ON THE PENULTIMATE PAGE

Book No. 1 (containing 28 pages)

THE INSTITUTE OF CHARTERED ACCOUNTANTS OF INDIA

CA Final ..... Examination

Group No. 2 Paper No. 5

Subject IDT

Number of Answer Books used : Main + 4 additional sheets

Date Seal 07 MAY 2026 10 MAY 2026

For use by ICAI only

874519

SEAL ACCOUNTANTS OF INDIA MAY, 2026

Paper Code: K P B 1

MCQ Booklet Serial No.: 25198116

Paper No.: 5

Level of Exam: Final

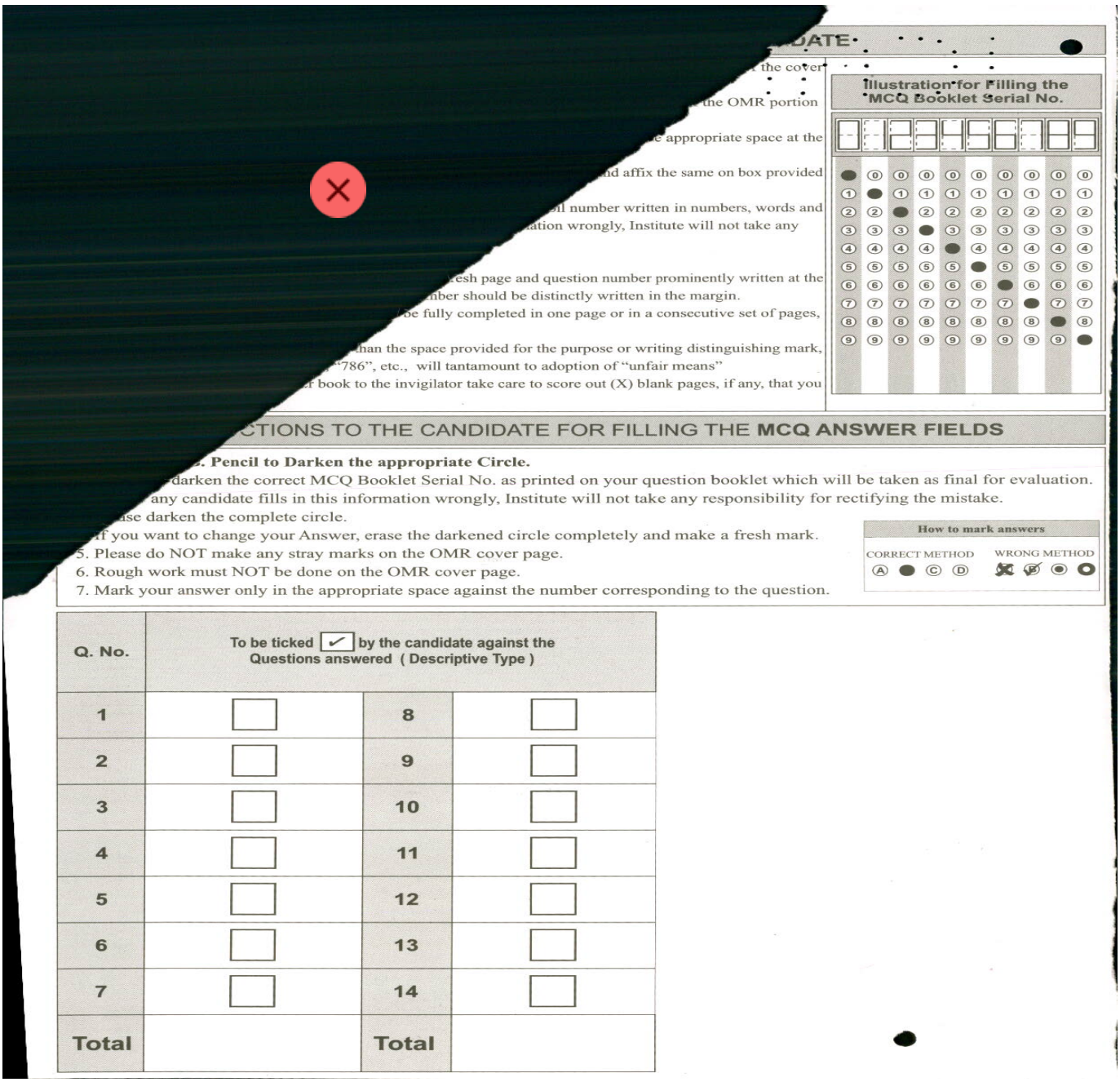
Foundation (1) Intermediate (2) Final (3)

MCQ Answers

1	A	B	C	D	11	A	B	C	D	21	A	B	C	D
2	A	B	C	D	12	A	B	C	D	22	A	B	C	D
3	A	B	C	D	13	A	B	C	D	23	A	B	C	D
4	A	B	C	D	14	A	B	C	D	24	A	B	C	D
5	A	B	C	D	15	A	B	C	D	25	A	B	C	D
6	A	B	C	D	16	A	B	C	D	26	A	B	C	D
7	A	B	C	D	17	A	B	C	D	27	A	B	C	D
8	A	B	C	D	18	A	B	C	D	28	A	B	C	D
9	A	B	C	D	19	A	B	C	D	29	A	B	C	D
10	A	B	C	D	20	A	B	C	D	30	A	B	C	D

The Institute of Chartered Accountants of India

Code:	**FN5IT874519**	**Total Marks:**	**70**
Subject :	**05 Indirect Tax Laws**	**Marks Obtained :**	**48**



DATE

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Illustration for Filling the MCQ Booklet Serial No.

0 1 2 3 4 5 6 7 8 9

CTIONS TO THE CANDIDATE FOR FILLING THE MCQ ANSWER FIELDS

. Pencil to Darken the appropriate Circle.

darken the correct MCQ Booklet Serial No. as printed on your question booklet which will be taken as final for evaluation.

any candidate fills in this information wrongly, Institute will not take any responsibility for rectifying the mistake.

ase darken the complete circle.

f you want to change your Answer, erase the darkened circle completely and make a fresh mark.

5. Please do NOT make any stray marks on the OMR cover page.

6. Rough work must NOT be done on the OMR cover page.

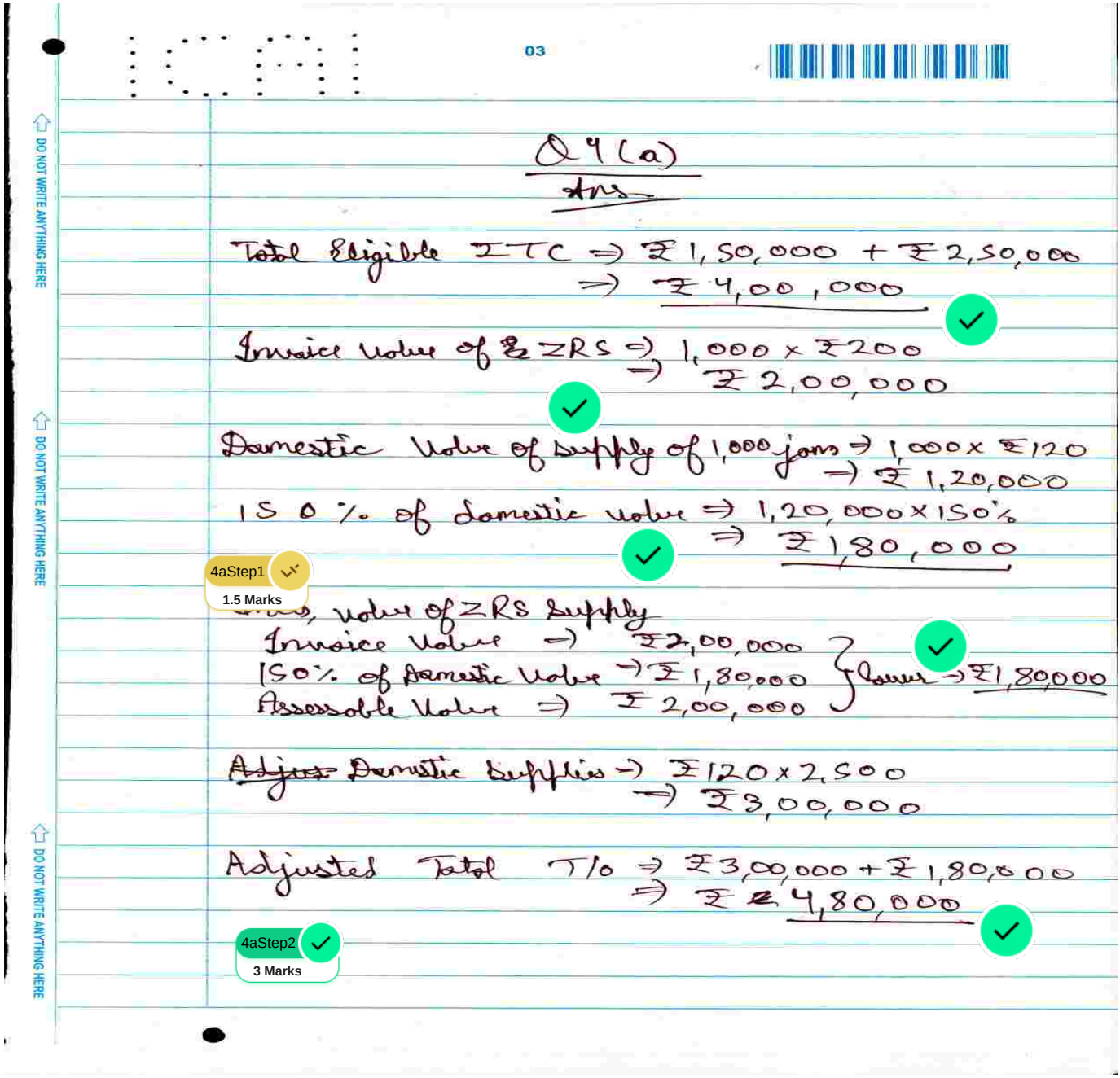
7. Mark your answer only in the appropriate space against the number corresponding to the question.

How to mark answers

CORRECT METHOD: (A) ● (C) (D)

WRONG METHOD: ✗ ✓ ● ○

Q. No.	To be ticked ✓ by the candidate against the Questions answered (Descriptive Type)		
1	☐	8	☐
2	☐	9	☐
3	☐	10	☐
4	☐	11	☐
5	☐	12	☐
6	☐	13	☐
7	☐	14	☐
Total		Total	



03

Q4(a)

Ans:

Total Eligible ITC ⇒ ₹1,50,000 + ₹2,50,000
⇒ ₹4,00,000

Invoice value of 2 ZRS ⇒ 1,000 × ₹200
⇒ ₹2,00,000

Domestic value of supply of 1,000 jars ⇒ 1,000 × ₹120
⇒ ₹1,20,000

150% of domestic value ⇒ 1,20,000 × 150%
⇒ ₹1,80,000

4aStep1
1.5 Marks

Thus, value of ZRS supply
Invoice value ⇒ ₹2,00,000
150% of domestic value ⇒ ₹1,80,000
Assessable value ⇒ ₹2,00,000
Lower ⇒ ₹1,80,000

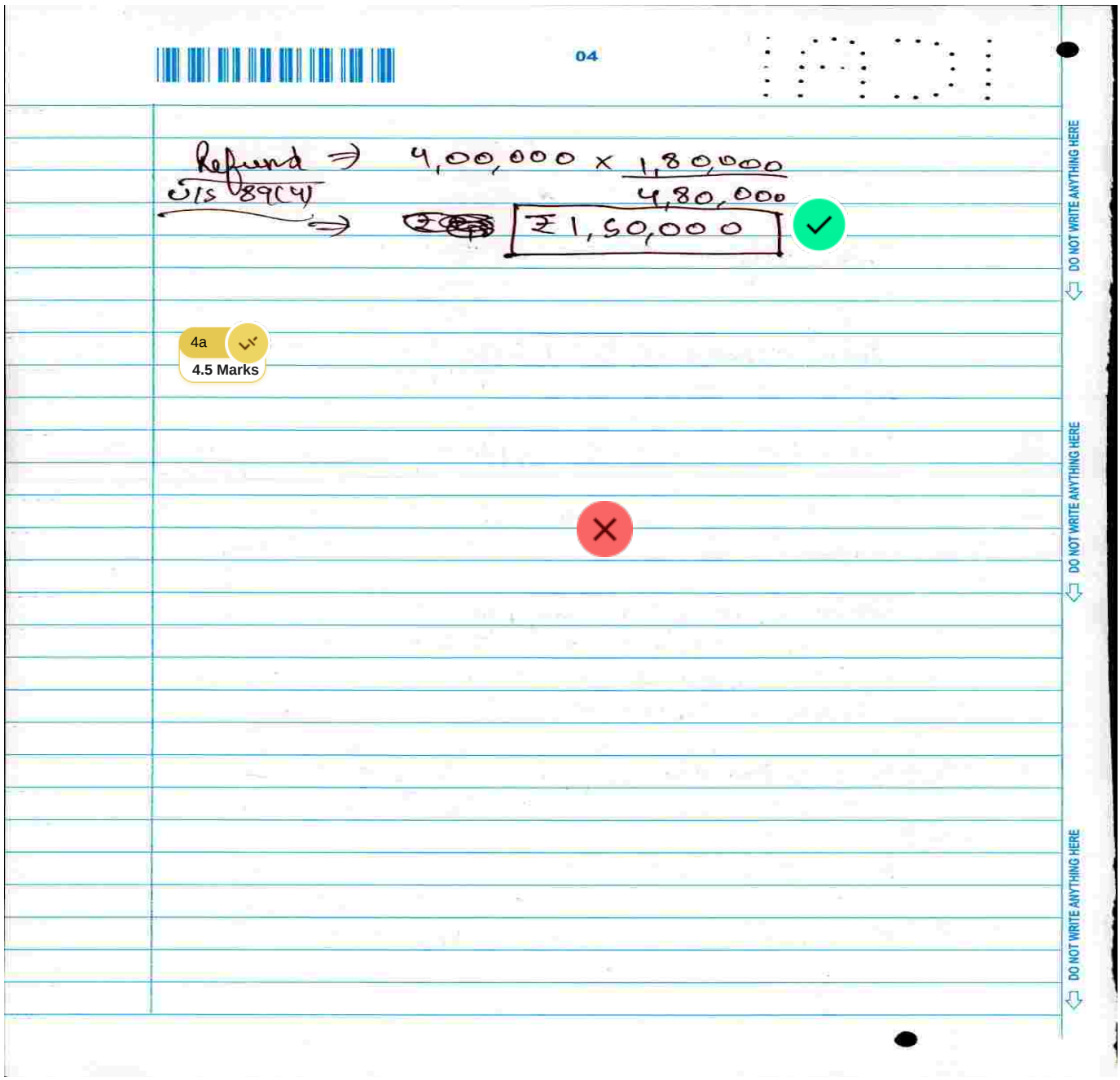
~~Adjust~~ Domestic supplies ⇒ ₹120 × 2,500
⇒ ₹3,00,000

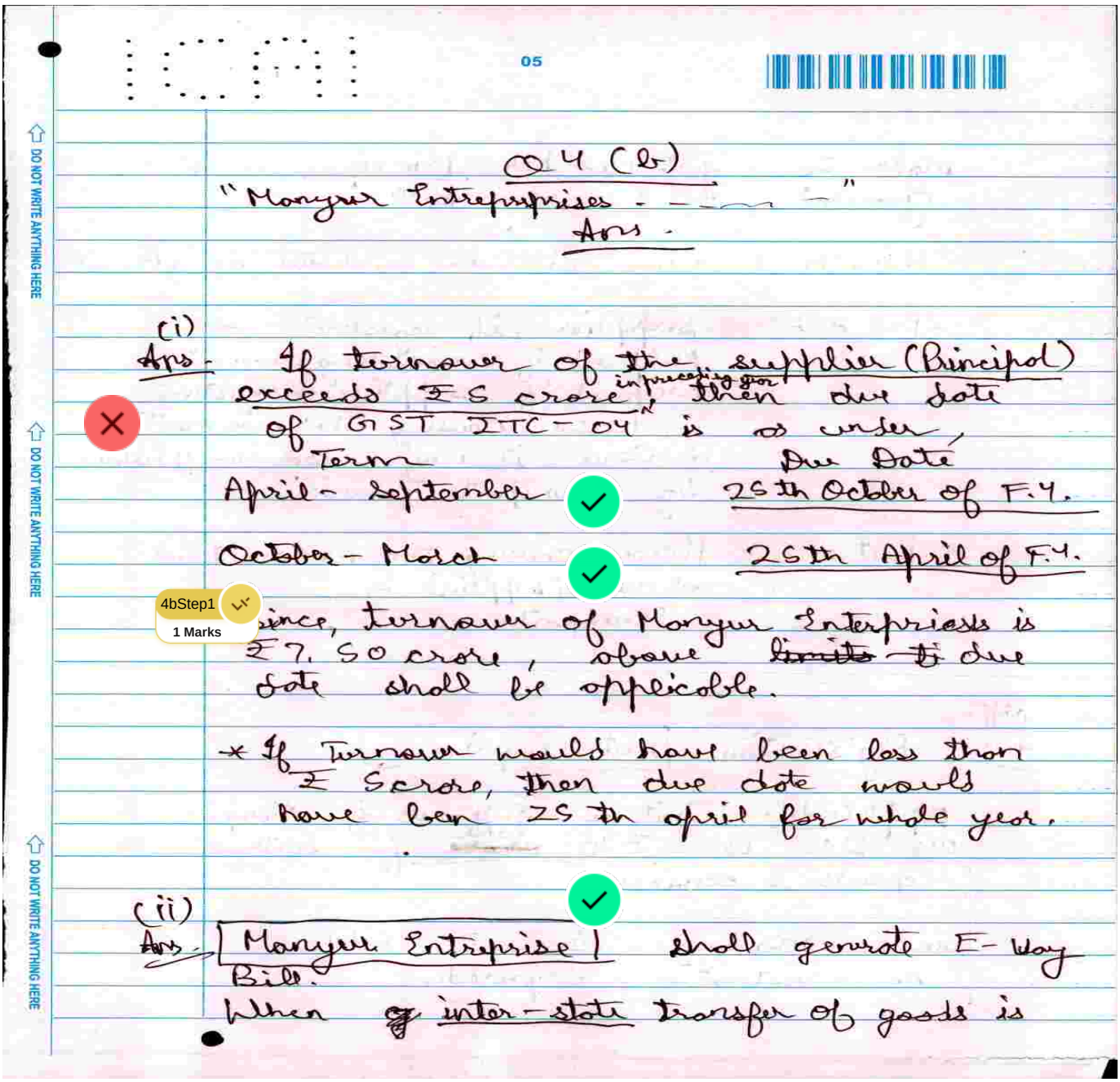
Adjusted Total T/o ⇒ ₹3,00,000 + ₹1,80,000
⇒ ₹4,80,000

4aStep2
3 Marks

The Institute of Chartered Accountants of India

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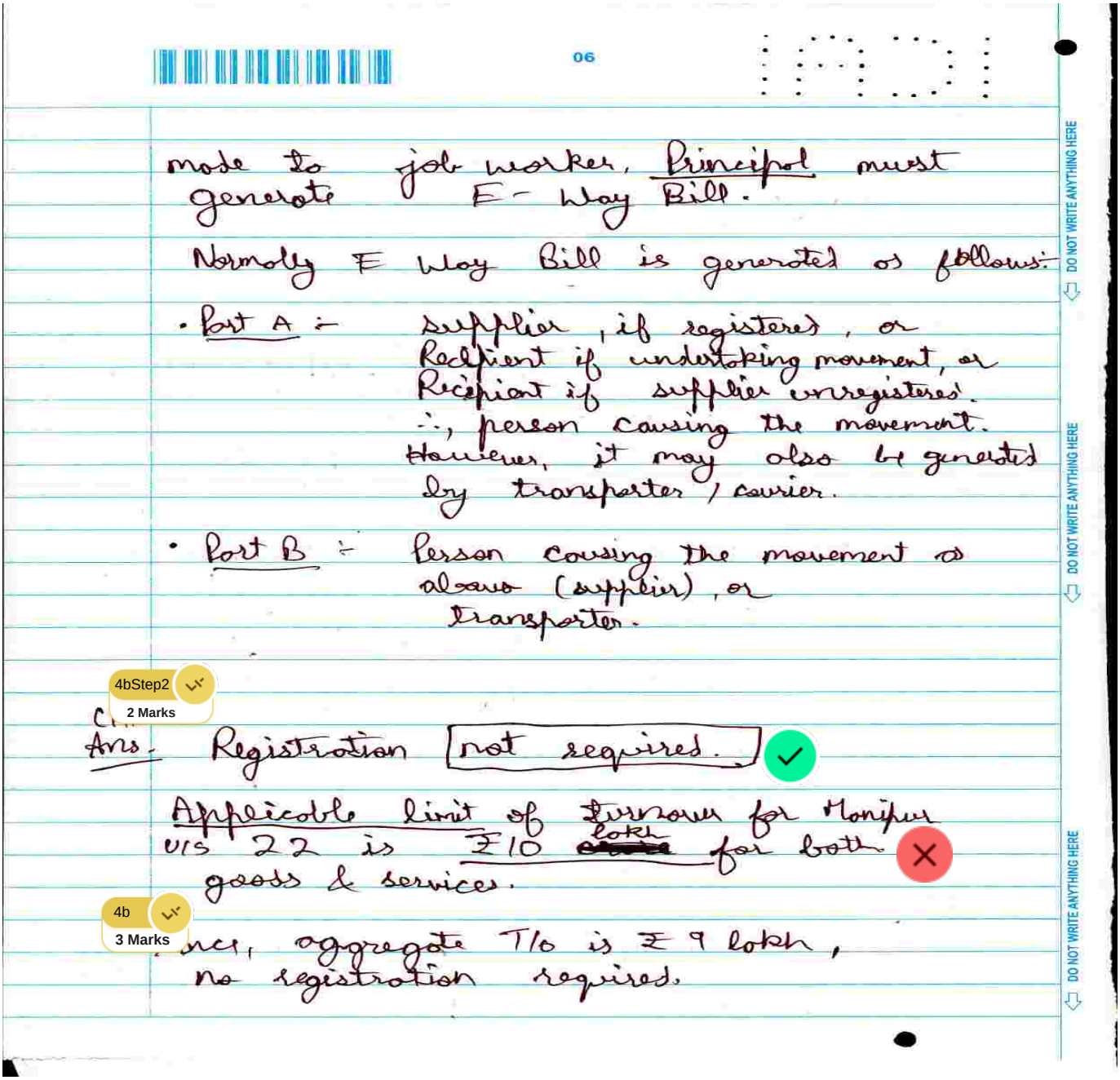




05

Q 4 (b)

"Monyar Entreprises - - -



06

made to job worker, Principal must generate E-Way Bill.

Normally E Way Bill is generated as follows:-

- Part A :- Supplier, if registered, or Recipient if undertaking movement, or Recipient if supplier unregistered. i.e., person causing the movement. However, it may also be generated by transporter / courier.
- Part B :- Person causing the movement as above (supplier), or transporter.

4bStep2 2 Marks

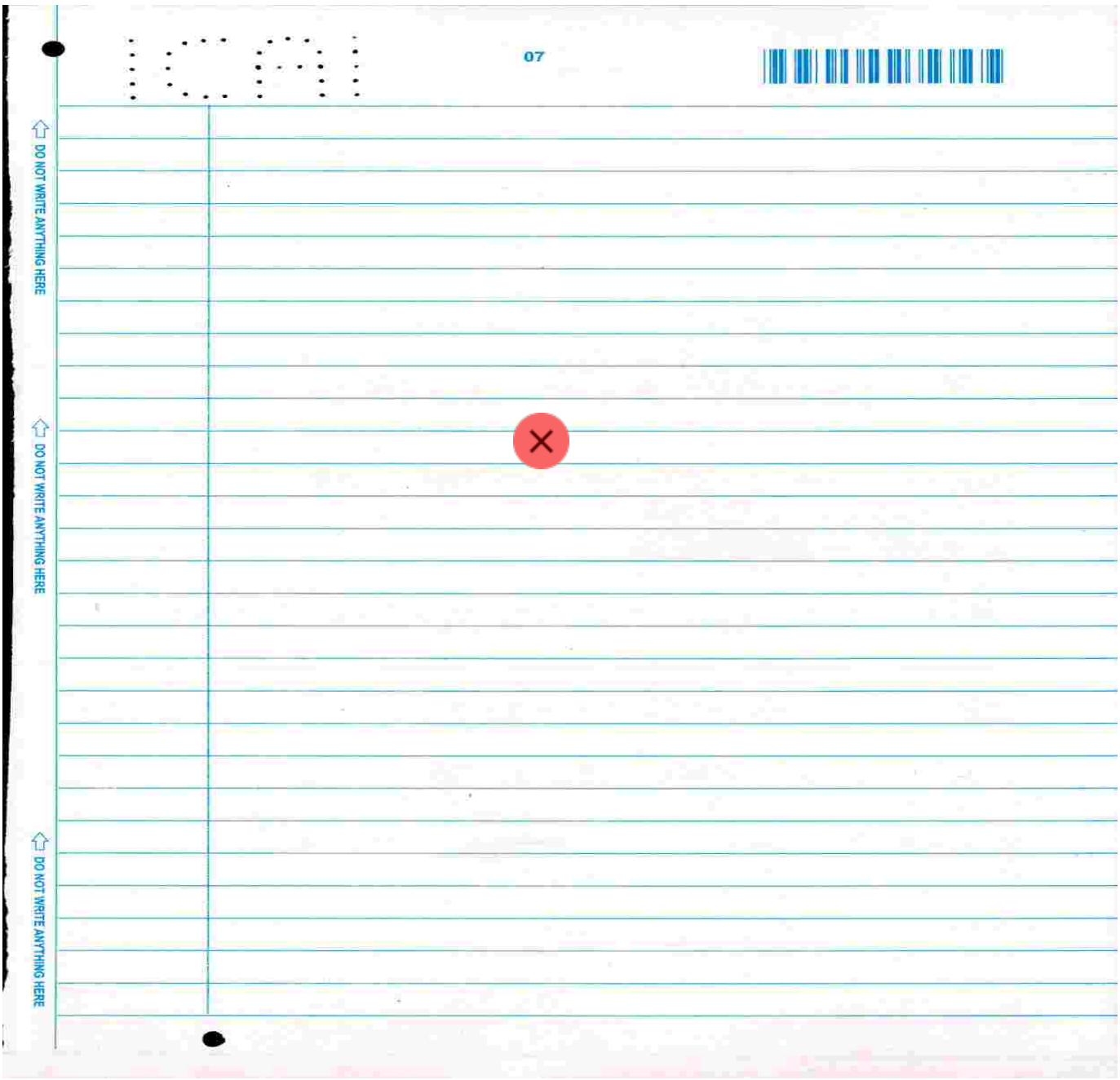
Ans. Registration not required. ✓

Applicable limit of turnover for Manipur u/s 22 is ₹10 lakh for both goods & services. ✗

4b 3 Marks

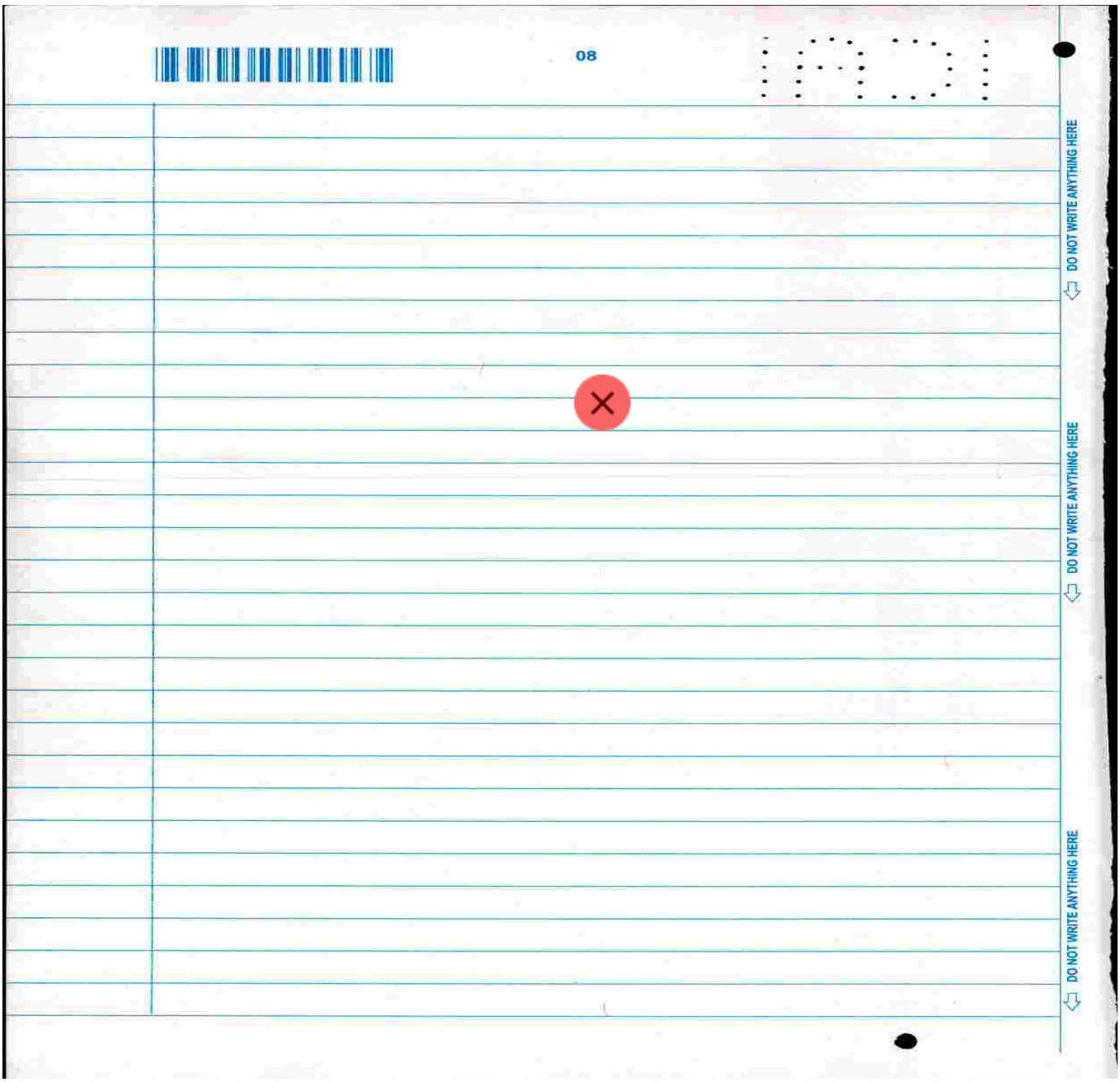
Hence, aggregate T/o is ₹ 9 lakh, no registration required.

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The Institute of Chartered Accountants of India

Code:	FN5IT874519	**Total Marks:**	70
Subject :	05 Indirect Tax Laws	**Marks Obtained :**	48



09

Q4 (c)
Ans.

Date of Provision Assessment ⇒ 31.07.2025
Duty demanded ⇒ ₹4,00,000
Date of payment ⇒ 10.10.2025

4cStep1 ✓
2 Marks

Case of provisional assessment is made, then ~~on final assessment~~, if amount determined in final assessment is more than amount of duty determined provisionally, then assessee is requires to deposit differential tax along with interest.

Interest shall be paid @ 15% p.a. from first day of the month in which duty determined provisionaly till date of payment of tax.

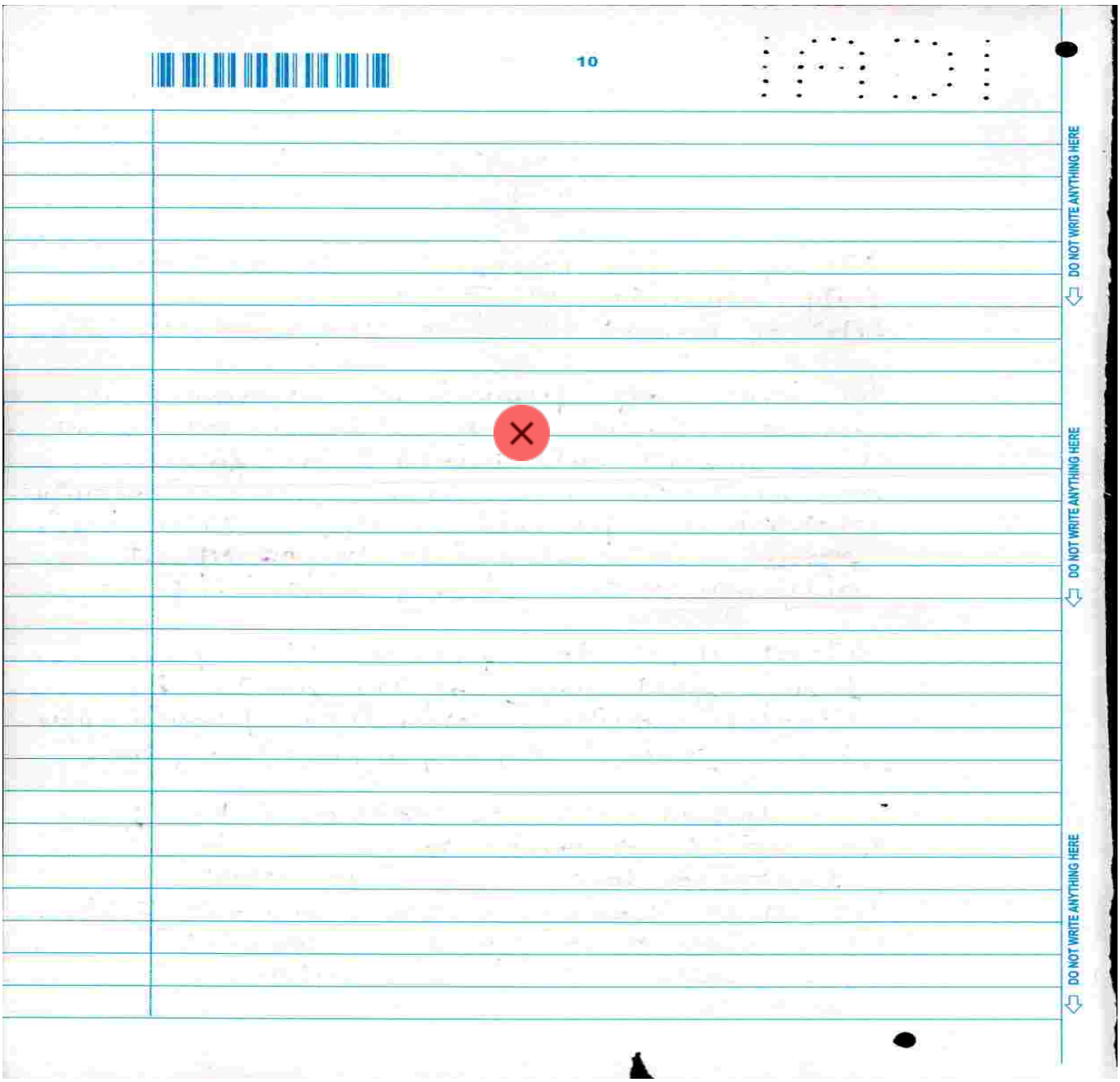
4cStep2 ✓
2 Marks

So, interest @ 15% on ₹4,00,000 from 1.07.2025 to 10.10.2025.
Days ⇒ 102 days
Interest ⇒ 4,00,000 × 15% × 102/365 ⇒ ₹ 16,107

4c ✓
4 ✓
11.5 Marks

The Institute of Chartered Accountants of India

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Subject :	05 Indirect Tax Laws	**Marks Obtained :**	48



Q 3 (a)
Ans -

Q3(a)

(i) Since Residential dwelling is taken on rent by registered person, tax is payable under Reverse Charge Mechanism (RCM)

Time of Supply
- Date of Making Payment
- Day after 60 days (i.e. 61st day) from date of issue of invoice by supplier

} earlier

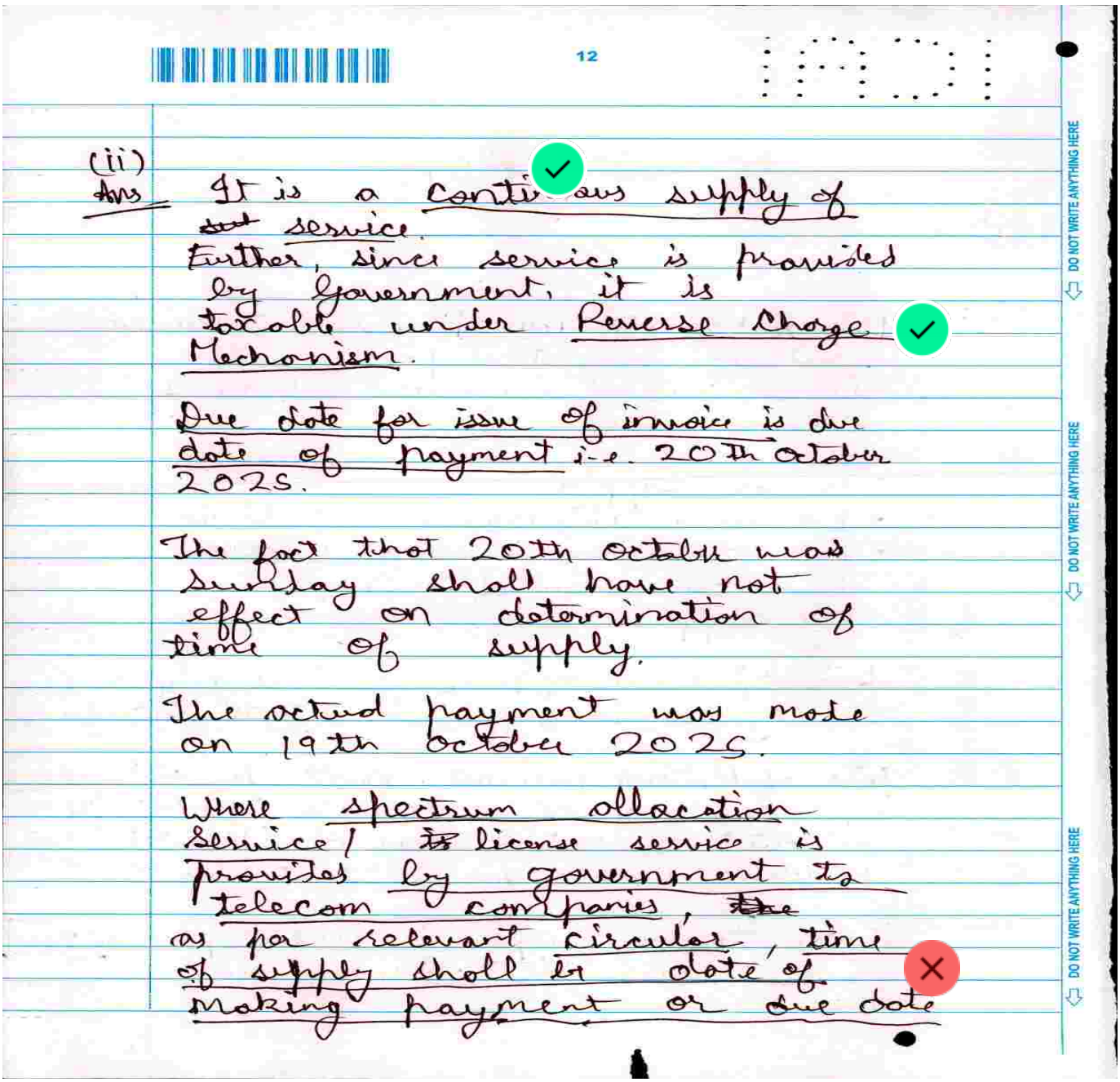
Date of issue of invoice ⇒ 31st July, 2025
61st day from issue of invoice ⇒ 30th September

Date of Making payment shall be date of entry in Books of Accounts (14th Oct. '2025) or date of debit in Bank A/c (15th Oct. '2025) whichever is earlier i.e., 14th October, 2025

3aStep1
1.5 Marks

Hence, time of supply is 30th September 2025 being earlier of 30th september & 14th October.

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12

(ii)

Ans It is a ~~cont~~ continuous supply of ~~goods~~ service.

Further, since service is provided by Government, it is taxable under Reverse Charge Mechanism.

Due date for issue of invoice is due date of payment i.e. 20th October 2025.

The fact that 20th October was Sunday shall have not effect on determination of time of supply.

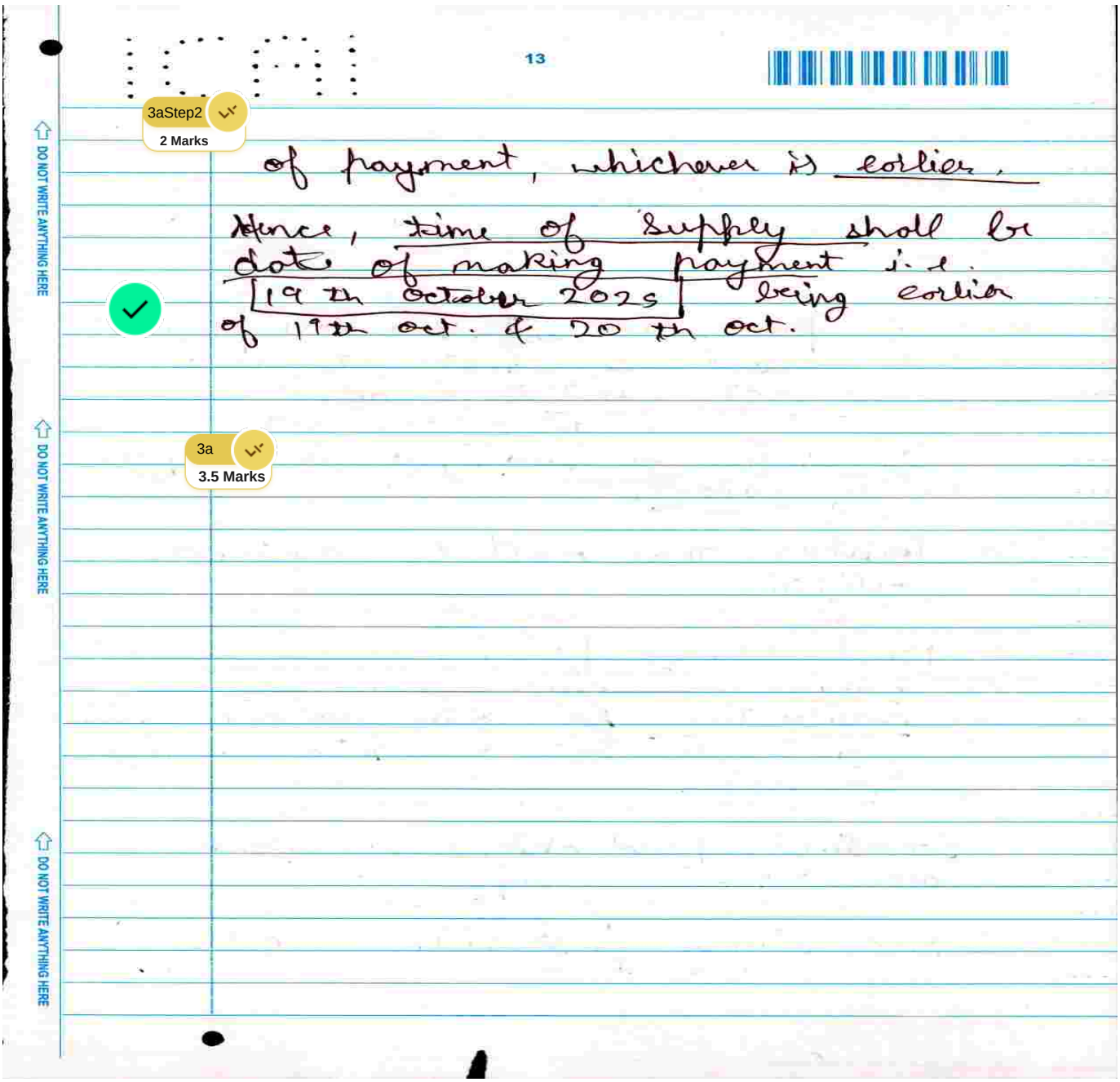
The actual payment was made on 19th October 2025.

Where spectrum allocation service / ~~its~~ license service is provided by government to telecom companies, ~~the~~ as per relevant circular, time of supply shall be date of making payment or due date

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13

3aStep2 ✓
2 Marks

of payment, whichever is earlier.

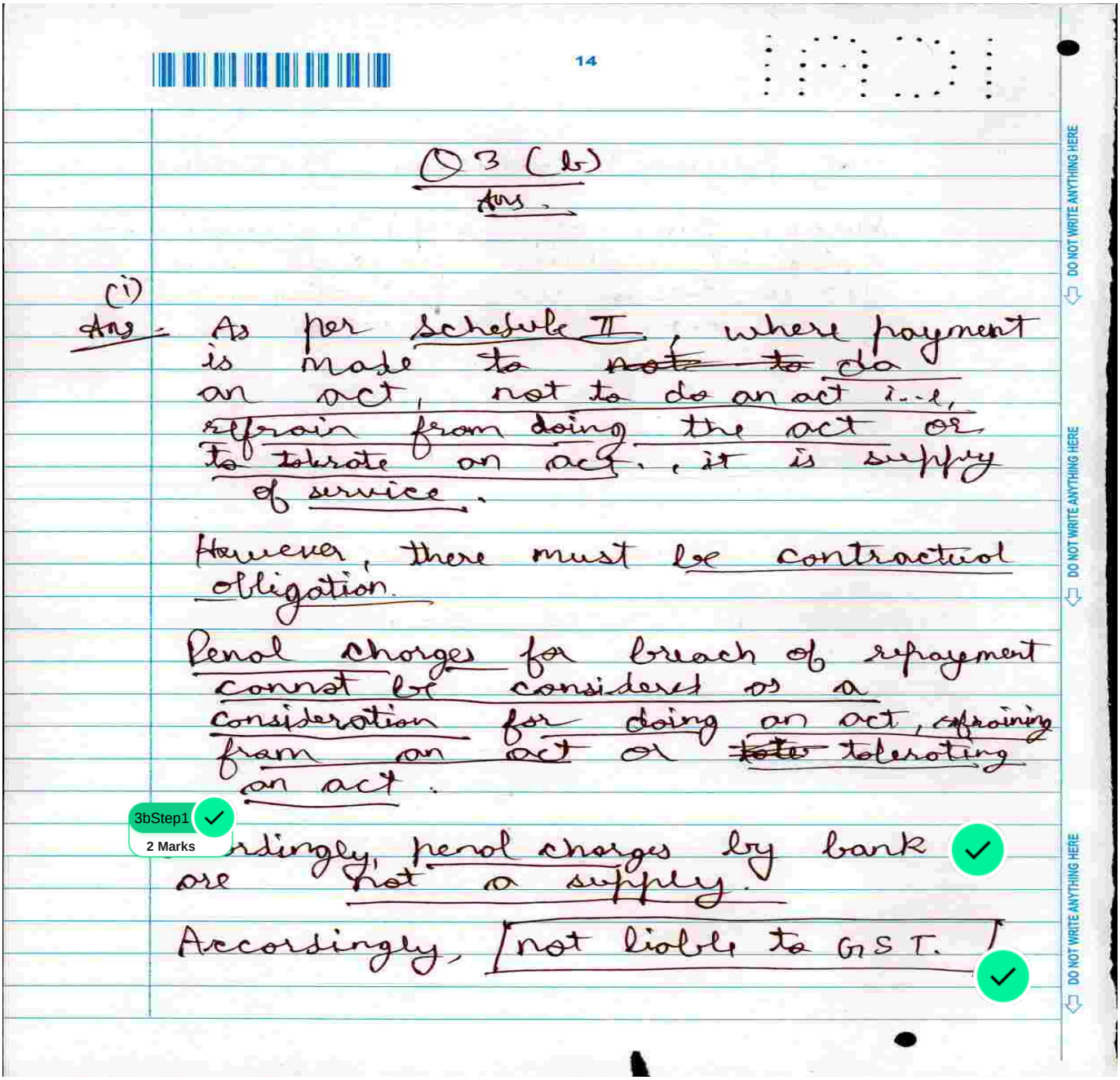
Hence, time of supply shall be date of making payment i.e. [19th October 2025] being earlier of 19th oct. & 20th oct.

3a ✓
3.5 Marks

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14

Q3 (b)

Ans.

(i)

Ans:- As per Schedule II, where payment is made to ~~not to do~~ do an act, not to do an act i.e., refrain from doing the act or to tolerate an act, it is supply of service.

However, there must be contractual obligation.

Penal charges for breach of repayment cannot be considered as a consideration for doing an act, refraining from an act or ~~toto~~ tolerating an act.

3bStep1 ✓
2 Marks

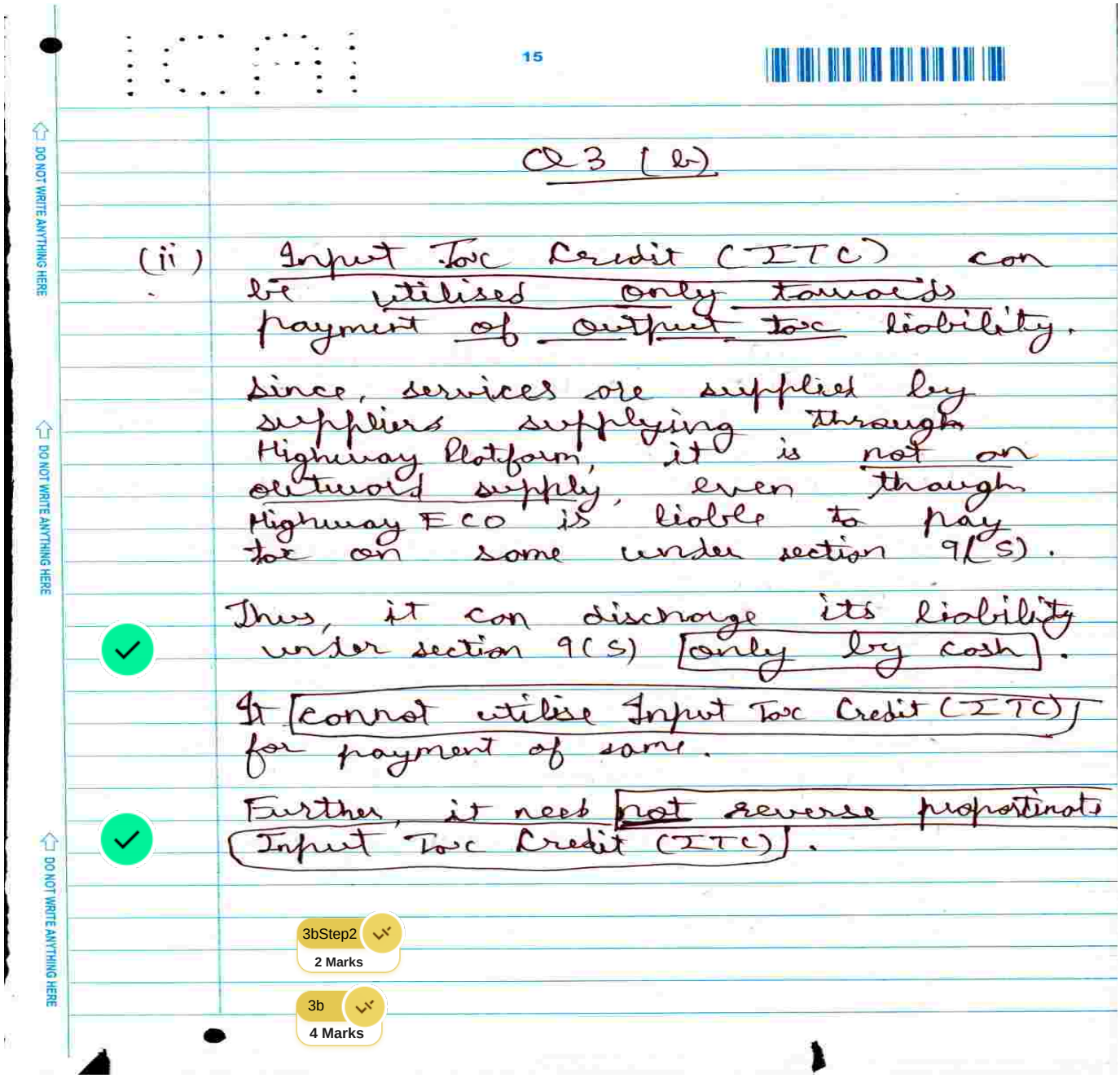
Accordingly, penal charges by bank are not a supply. ✓

Accordingly, not liable to GST. ✓

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15

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Q3 (b)

(ii) Input Tax Credit (ITC) can be utilised only towards payment of output tax liability.

Since, services are supplied by suppliers supplying through Highway Platform, it is not an outward supply, even though Highway ECO is liable to pay tax on some under section 9(5).

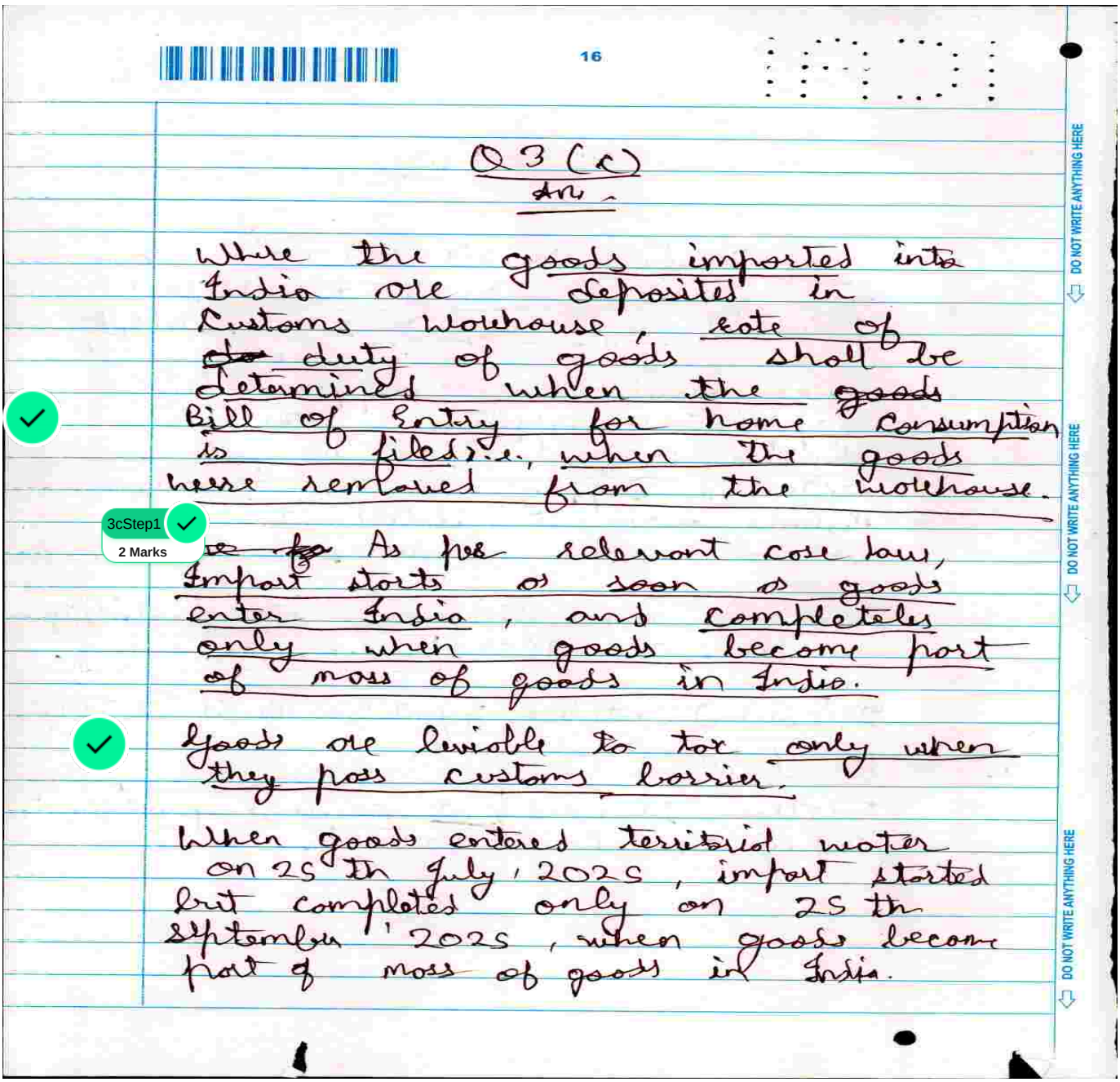
Thus, it can discharge its liability under section 9(5) only by cash.

It cannot utilise Input Tax Credit (ITC) for payment of same.

Further, it need not reverse proportionate Input Tax Credit (ITC).

3bStep2 — 2 Marks

3b — 4 Marks



16

Q3 (c)

Ans.

Where the goods imported into India are deposited in Customs Warehouse, rate of duty of goods shall be determined when the goods Bill of Entry for home consumption is filed, i.e., when the goods were removed from the warehouse.

3cStep1
2 Marks

As per relevant case laws, Import starts as soon as goods enter India, and completes only when goods become part of mass of goods in India.

Goods are leviable to tax only when they pass customs barrier.

When goods entered territorial water on 25th July, 2025, import started but completes only on 25th September, 2025, when goods become part of mass of goods in India.

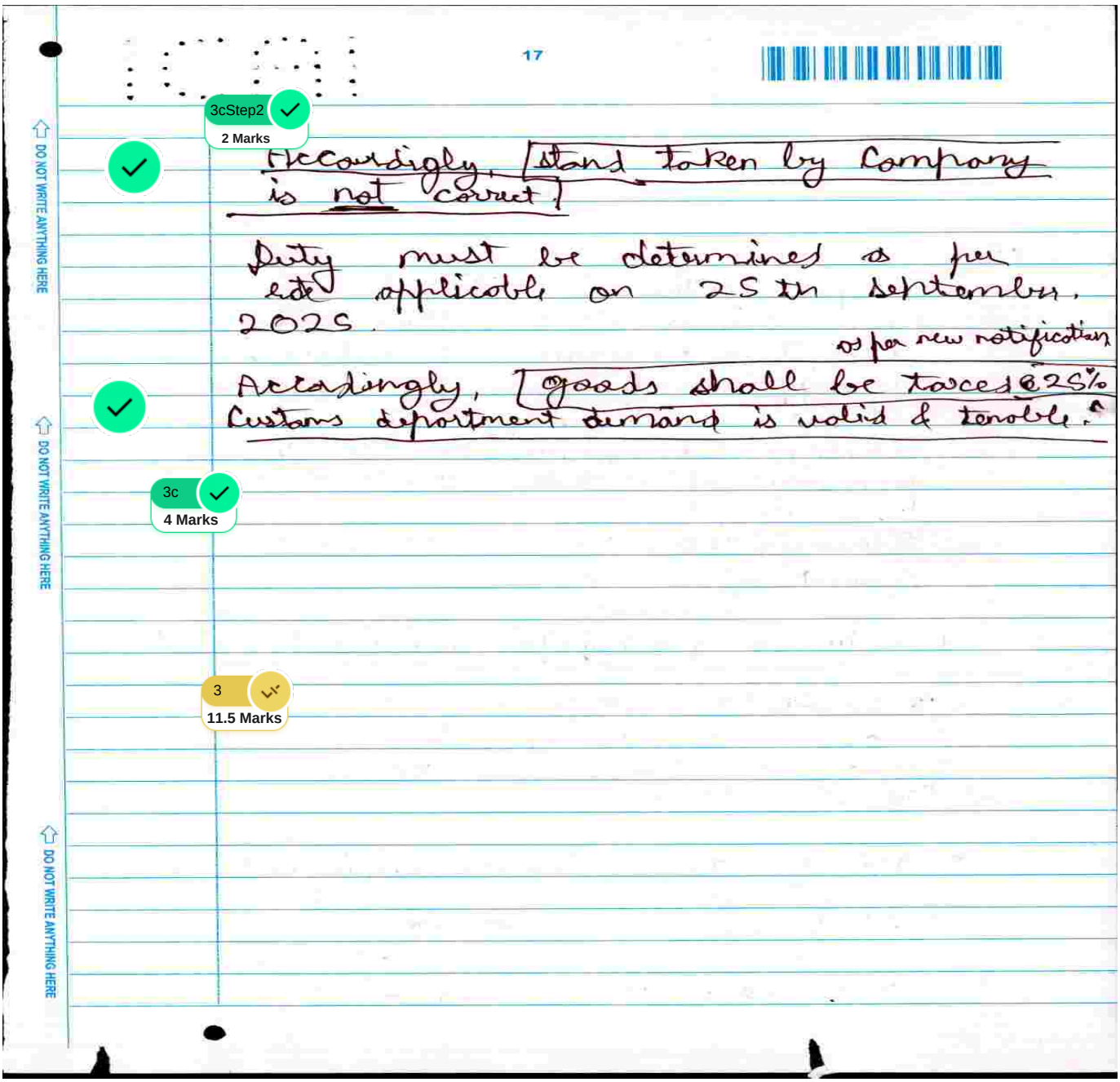
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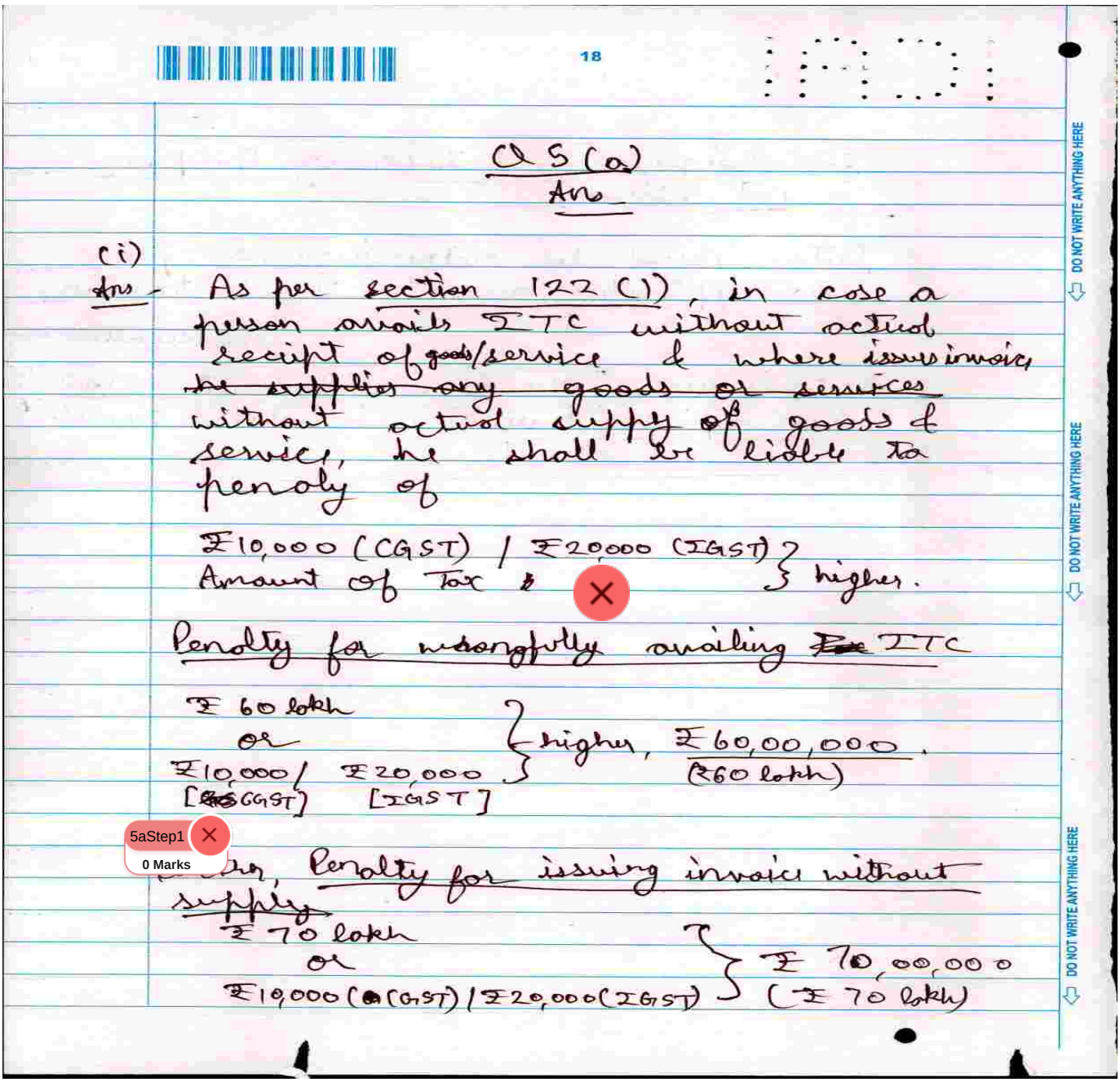
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18

Q 5 (a)
Ans

(i)
Ans - As per section 122 (1), in case a person avails ITC without actual receipt of goods/service & where issues invoice, ~~he supplies any goods or services~~ without actual supply of goods & service, he shall be liable to penalty of

₹10,000 (CGST) / ₹20,000 (IGST) } higher.
Amount of Tax

Penalty for wrongfully availing ~~For~~ ITC

₹ 60 lakh
or
₹10,000/ ₹20,000 } higher, ₹60,00,000.
[~~CGST~~] [IGST] (₹60 lakh)

5aStep1
0 Marks

Penalty for issuing invoice without supply

₹ 70 lakh
or
₹10,000 (~~CGST~~) / ₹20,000 (IGST) } ₹ 70,00,000 (₹ 70 lakh)

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Accordingly, Total Penalty under IGST ⇒ ₹60 lakh + ₹70 lakh ⇒ ₹1.30 crore

[Penalty under CGST/SGST ⇒ ₹ 65 lakh]

(ii)

Ans. Action may be taken ~~x~~ under section 74 A for wrongfully availing ITC.

Further, no arrest can be made as amount is less than ₹2 crore.

Also, no prosecution under section 132(1) as amount is less than ₹ 2 crore.

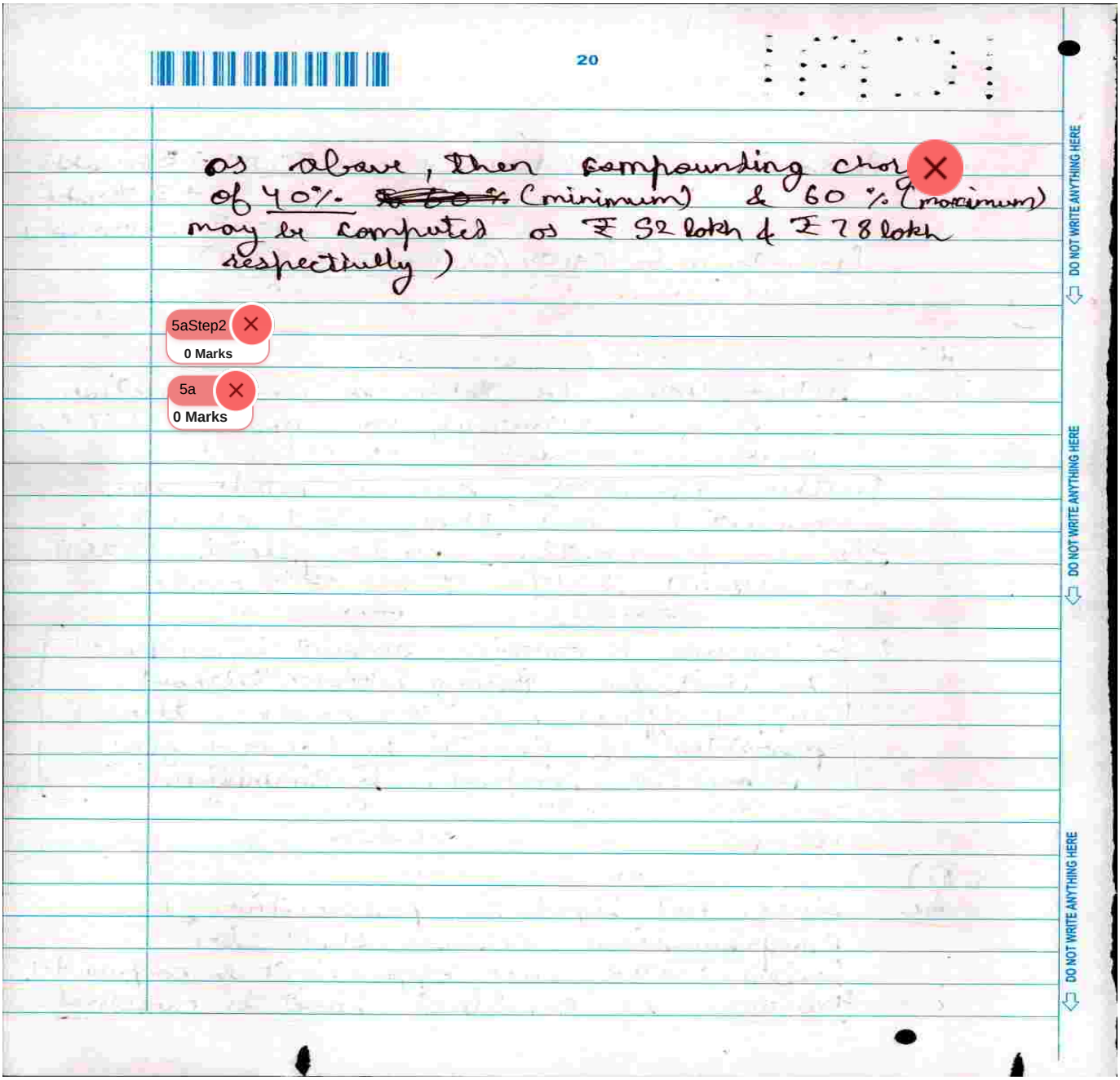
* [~~x~~ However, if combined amount is crossed to limit for issuing invoice without supply offence, i.e. ₹1 crore, then prosecution of 6 months to 1 year + fine may be imposed by Commissioner]

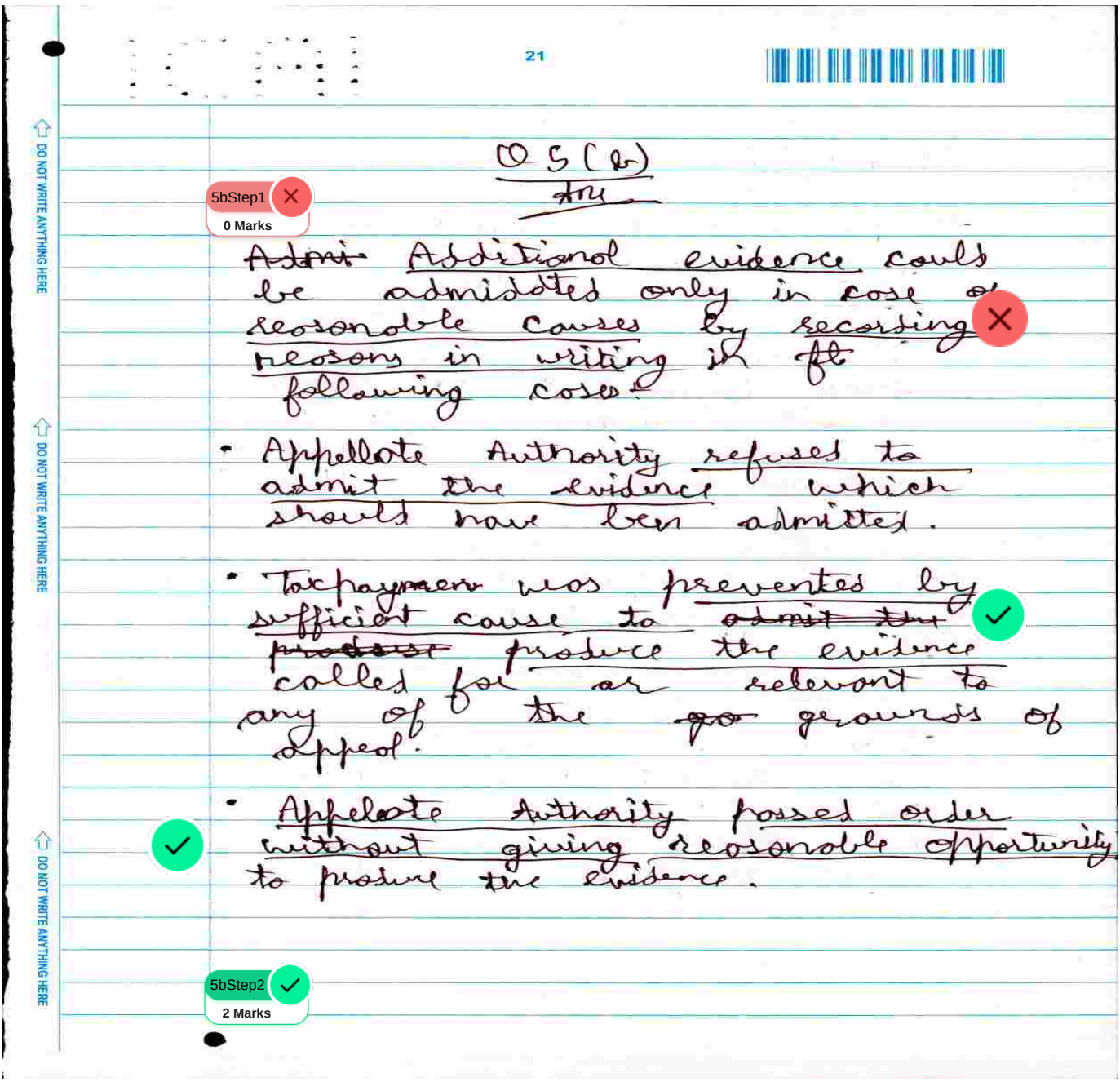
(iii)

Ans. Since, not liable to prosecution, no Compounding charges shall be levied. Further, such offence can't be compounded. However, if combined limit is considered

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21

Q 5 (b)

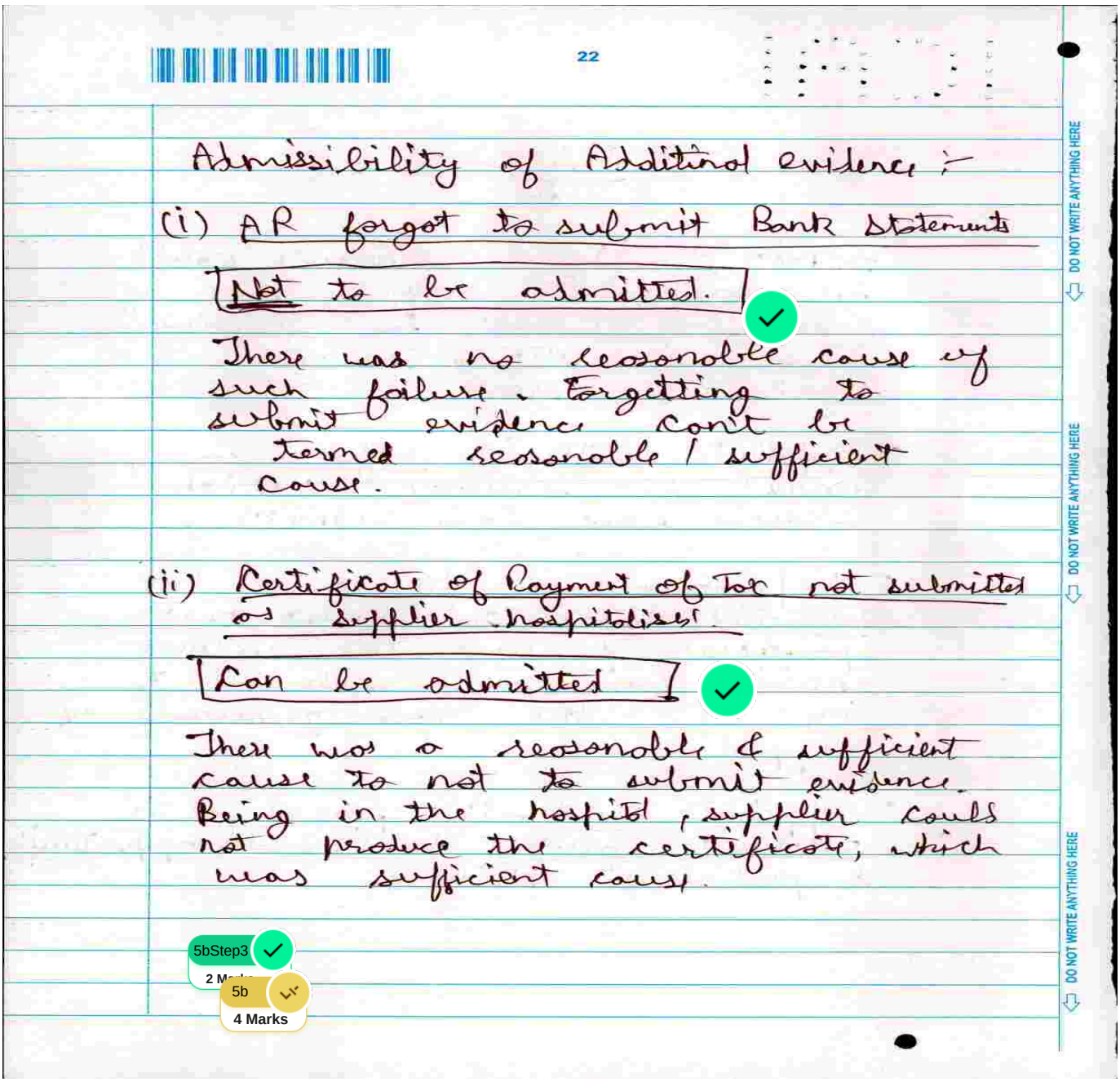
Any

5bStep1 ✗
0 Marks

~~Admi~~ Additional evidence could be admitted only in case of reasonable causes by recording reasons in writing in the following cases:

- Appellate Authority refuses to admit the evidence which should have been admitted.
- Taxpayer was prevented by sufficient cause to ~~admit the product~~ produce the evidence called for or relevant to any of the ~~go~~ grounds of appeal.
- Appellate Authority passed order without giving reasonable opportunity to produce the evidence.

5bStep2 ✓
2 Marks



22

Admissibility of Additional evidence :-

(i) AR forgot to submit Bank Statements

Not to be admitted.

There was no reasonable cause of such failure. Forgetting to submit evidence can't be termed reasonable / sufficient cause.

(ii) Certificate of Payment of Tax not submitted as supplier hospitalised.

Can be admitted

There was a reasonable & sufficient cause to not to submit evidence. Being in the hospital, supplier could not produce the certificate, which was sufficient cause.

5bStep3

2 Marks

5b

4 Marks

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Q 5 (c)
Ans.

5cStep1 ✓
2 Marks

Exporters :-

- **Service Exporters** - These are the exporter that do not export the goods, but rather export services.
- **Manufacturer Exporters** - These are exporters who actually produce the goods exported.
- **Merchant Exporters** - They export goods on behalf of other exporters.

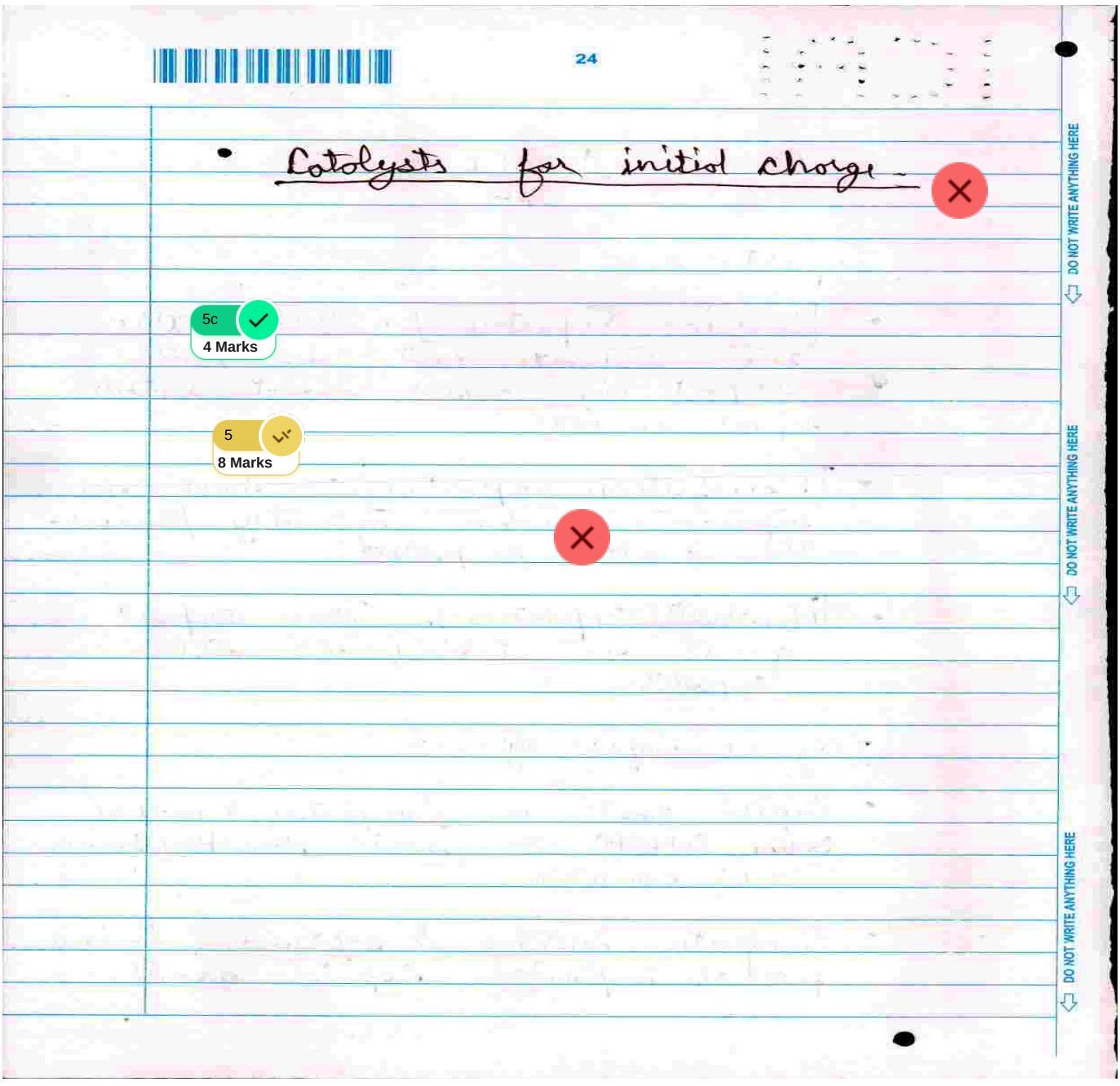
Eligible Capital Goods

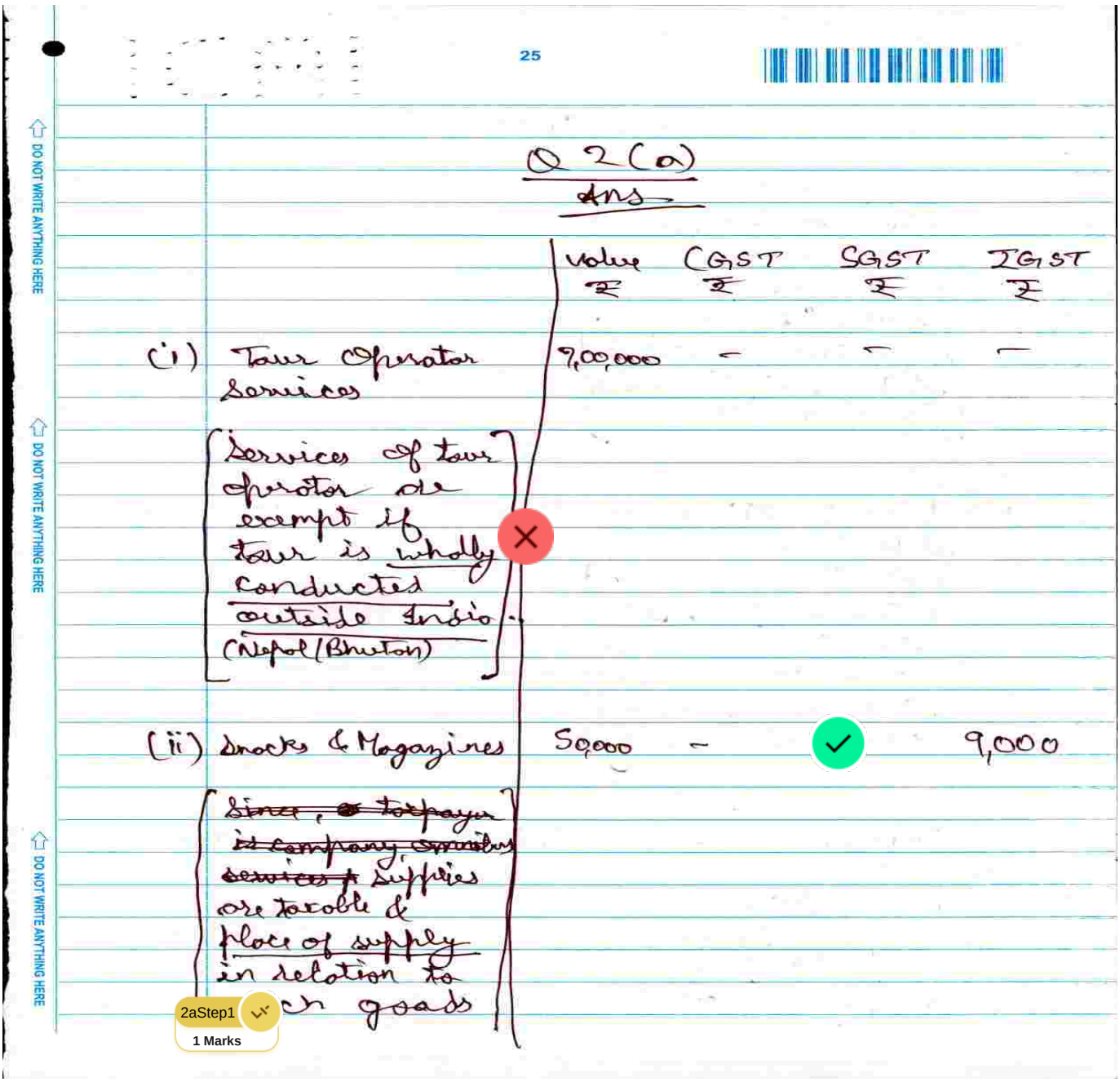
- Capital goods, in Completely Knocked Down (CKD) or Semi-Knocked Down (SKD) condition
- Computer systems & software being part of imported capital goods.

5cStep2 ✓
2 Marks

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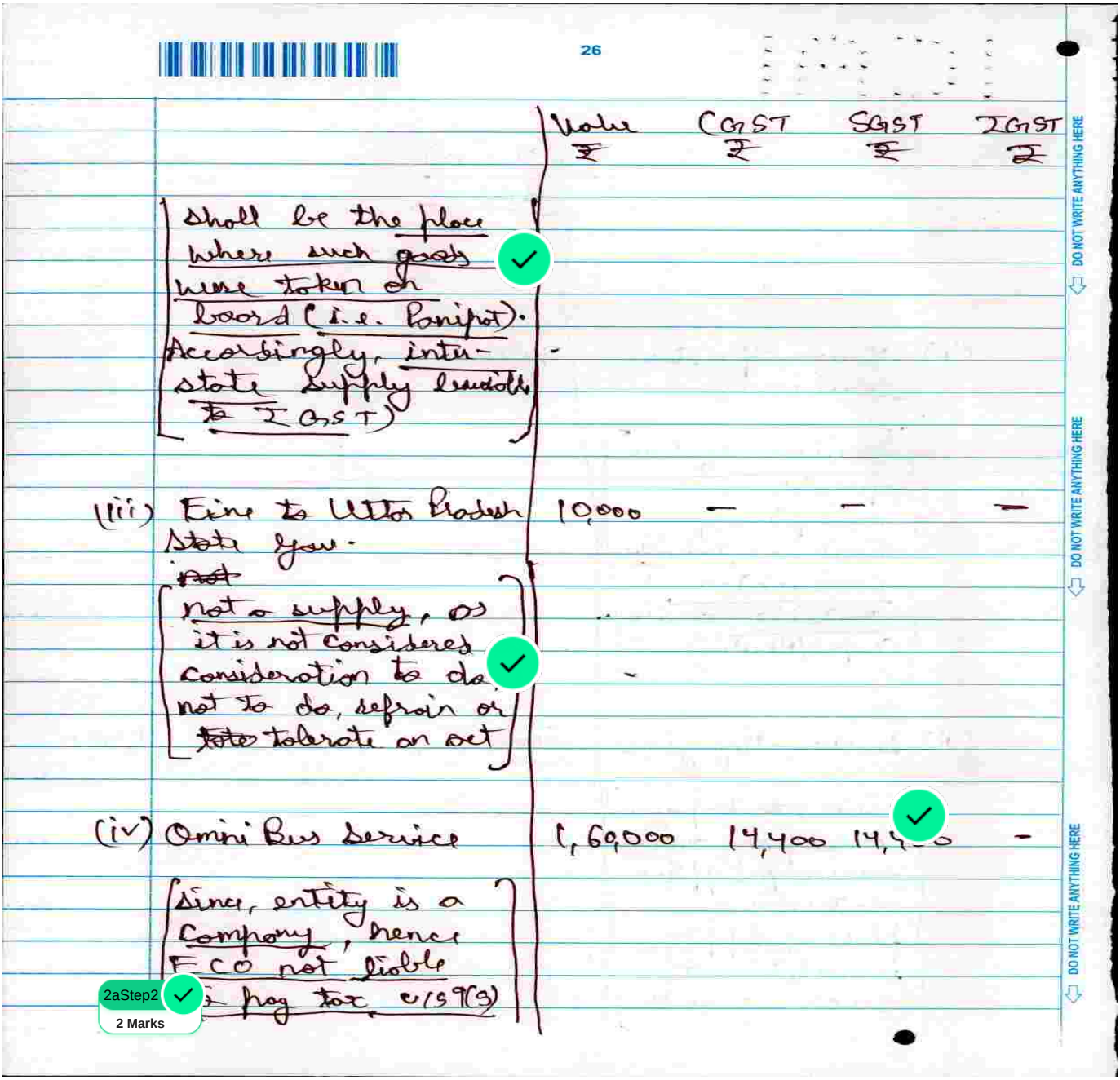
25

Q 2 (a)
Ans

		Value ₹	CGST ₹	SGST ₹	IGST ₹
(i)	Tour Operator Services	9,00,000	-	-	-
	Services of tour operator are exempt if tour is wholly conducted outside India (Nepal/Bhutan)				
(ii)	Snacks & Magazines	50,000	-		9,000
	~~Since, a taxpayer is company, provides services & Supplies~~ are taxable & ~~place of supply~~ in relation to such goods				

2aStep1 ½
1 Marks

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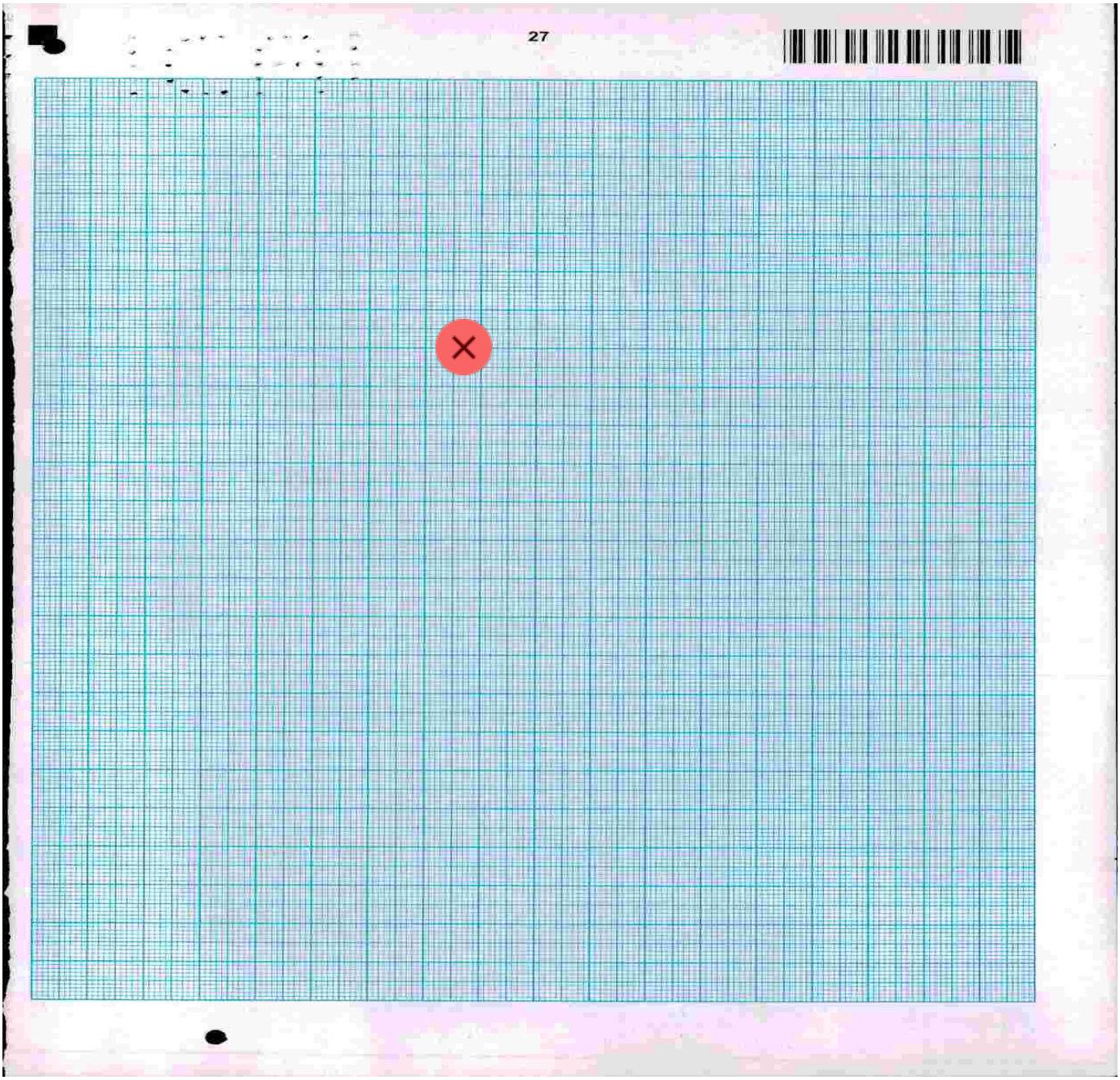
26

		Value ₹	CGST ₹	SGST ₹	IGST ₹
	shall be the place where such goods were taken on board (i.e. Panipat). Accordingly, inter-state supply (subject to IGST)				
(iii)	Fine to Uttar Pradesh State Govt. ~~not~~ not a supply, as it is not considered consideration to do not to do, refrain or ~~tote~~ tolerate an act	10,000	—	—	—
(iv)	Omni Bus Service. Since, entity is a Company, hence ECO not liable to pay tax u/s 9(5)	1,60,000	14,400	14,400	—

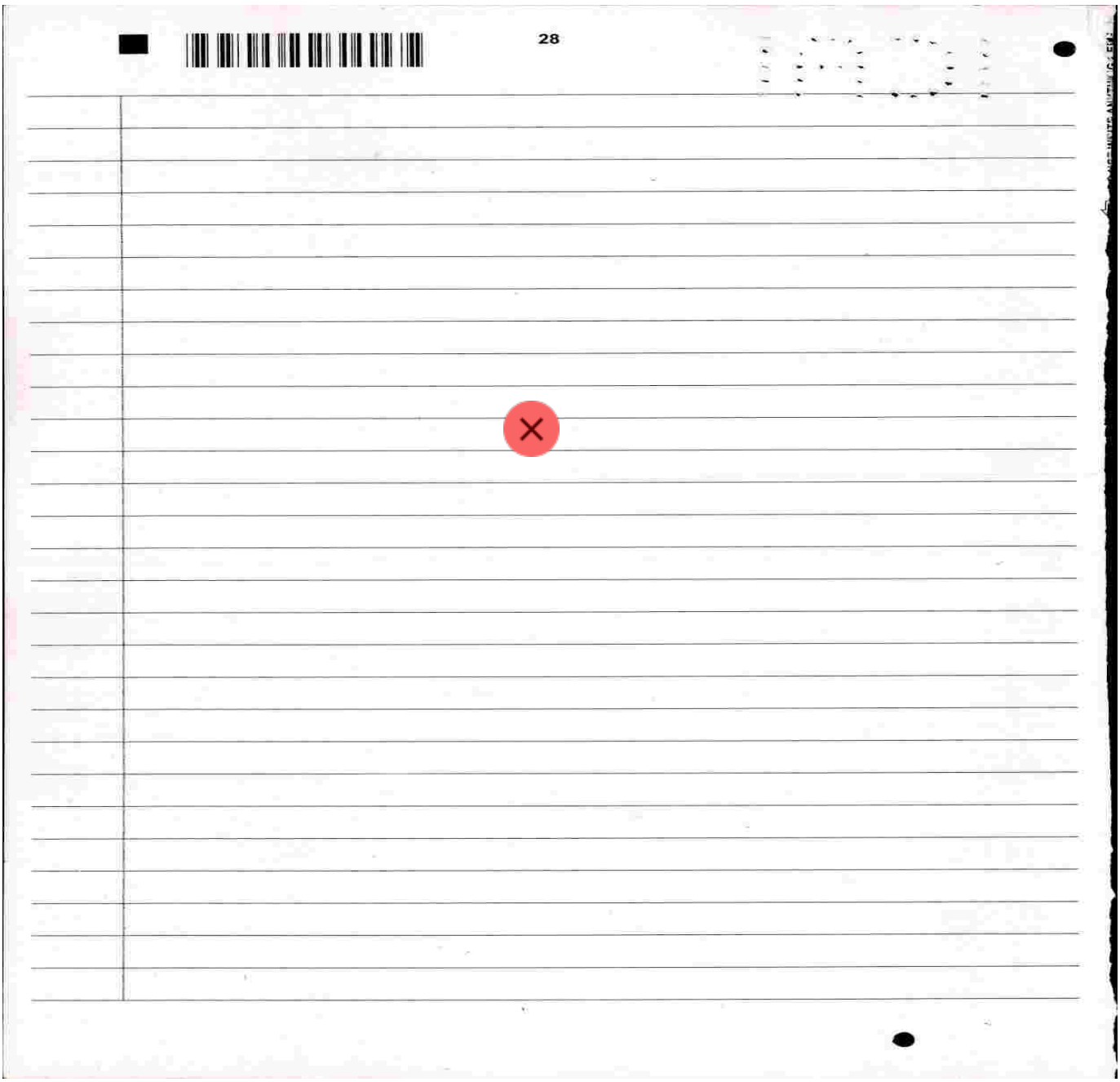
2aStep2 ✓ 2 Marks

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Subject :	05 Indirect Tax Laws	**Marks Obtained :**	48



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5874519-01

Addl. Book No. 1

THE INSTITUTE OF CHARTERED ACCOUNTANTS OF INDIA
ADDL. BOOK

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	Value ₹	CGST ₹	SGST ₹	IGST ₹
Hence, company liable to pay GST	~~1,60~~			
Sponsoring Services	2,00,000	18,000	18,000	—
Services not exempt just because provided to NGO, ∴ Taxable. Further, place of supply is location of recipient i.e., Punjab				
Gross Tax Liability		32,400	32,400	9,000

2aStep3 0.5 Marks

2a 3.5 Marks

Code:	FN5IT874519	**Total Marks:**	70
Subject :	05 Indirect Tax Laws	**Marks Obtained :**	48

Q 2 (c)

Ans -

Assuming, Reproducing Charges as condition for sale.

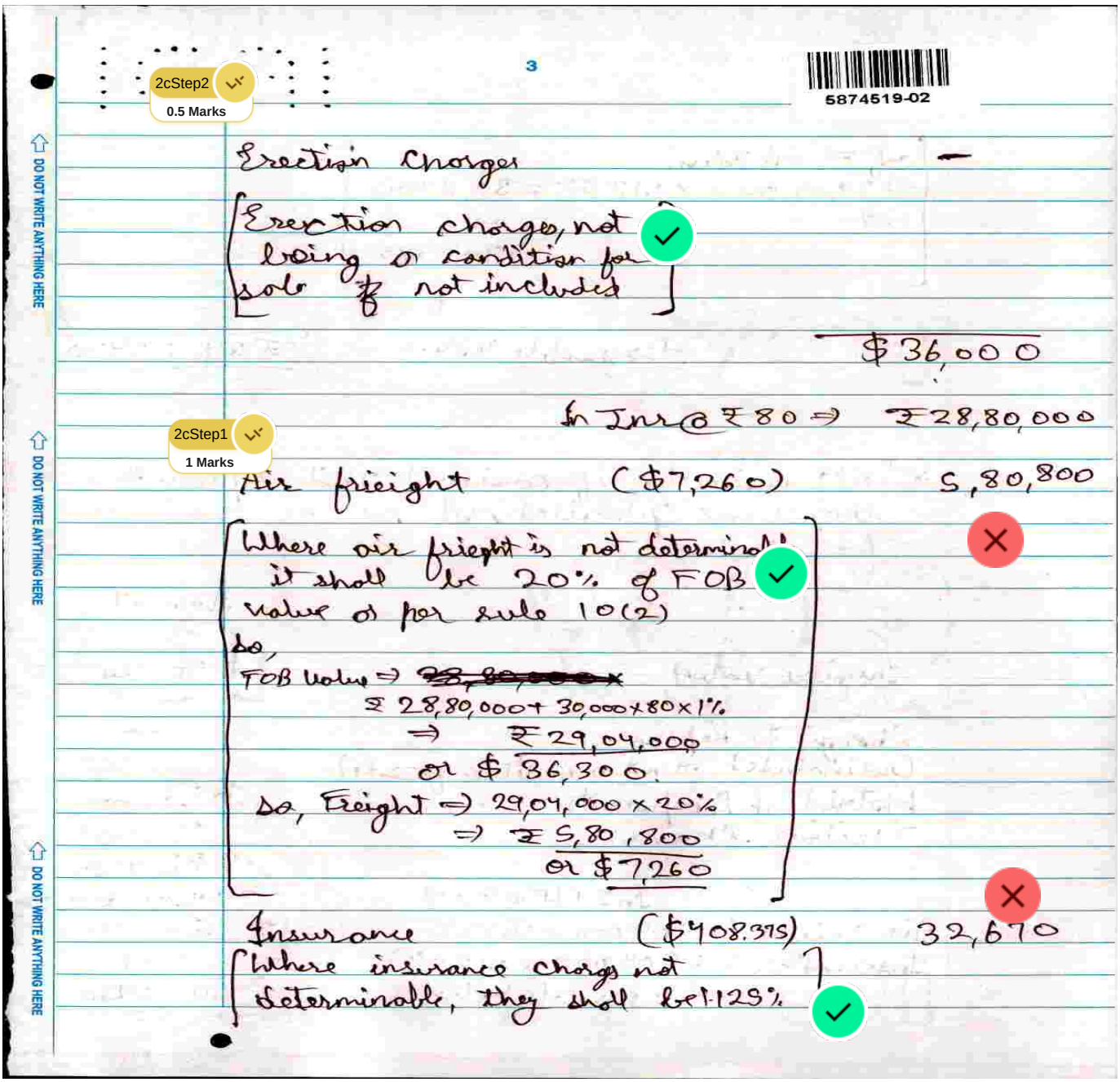
	Amount
Invoice value (30,000 x 80 = ₹24,00,000)	$ 30,000
Charges to Reproduce goods (5,000 x 80 = 4,00,000 Rs)	$ 5,000

Any amount paid to exporter as a condition of sale is includible in assessable value as per section 10(1). Reproducing, Charges as condition for sale are taxable.

Materials & Components (1,000 x 80 = 80,000 Rs) [$4,000 − $3,000 = $1,000]	$ 1,000

Any As per section 10(1), where any goods or services are provided by supplier free of cost/reduced cost as a condition for sale, then amount of such goods not already included in assessable value, is added

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2cStep2 ✓
0.5 Marks

Erection Charges

Erection charges, not being a condition for sale if not included ✓

$36,000

In Inr @ ₹80 ⇒ ₹28,80,000

2cStep1 ✓
1 Marks

Air freight ($7,260) 5,80,800 ✗

Where air freight is not determined it shall be 20% of FOB value as per rule 10(2) ✓

So,

FOB Value ⇒ ~~28,80,000~~ ×

₹ 28,80,000 + 30,000 × 80 × 1%

⇒ ₹29,04,000

or $36,300.

So, Freight ⇒ 29,04,000 × 20%

⇒ ₹5,80,800

or $7,260

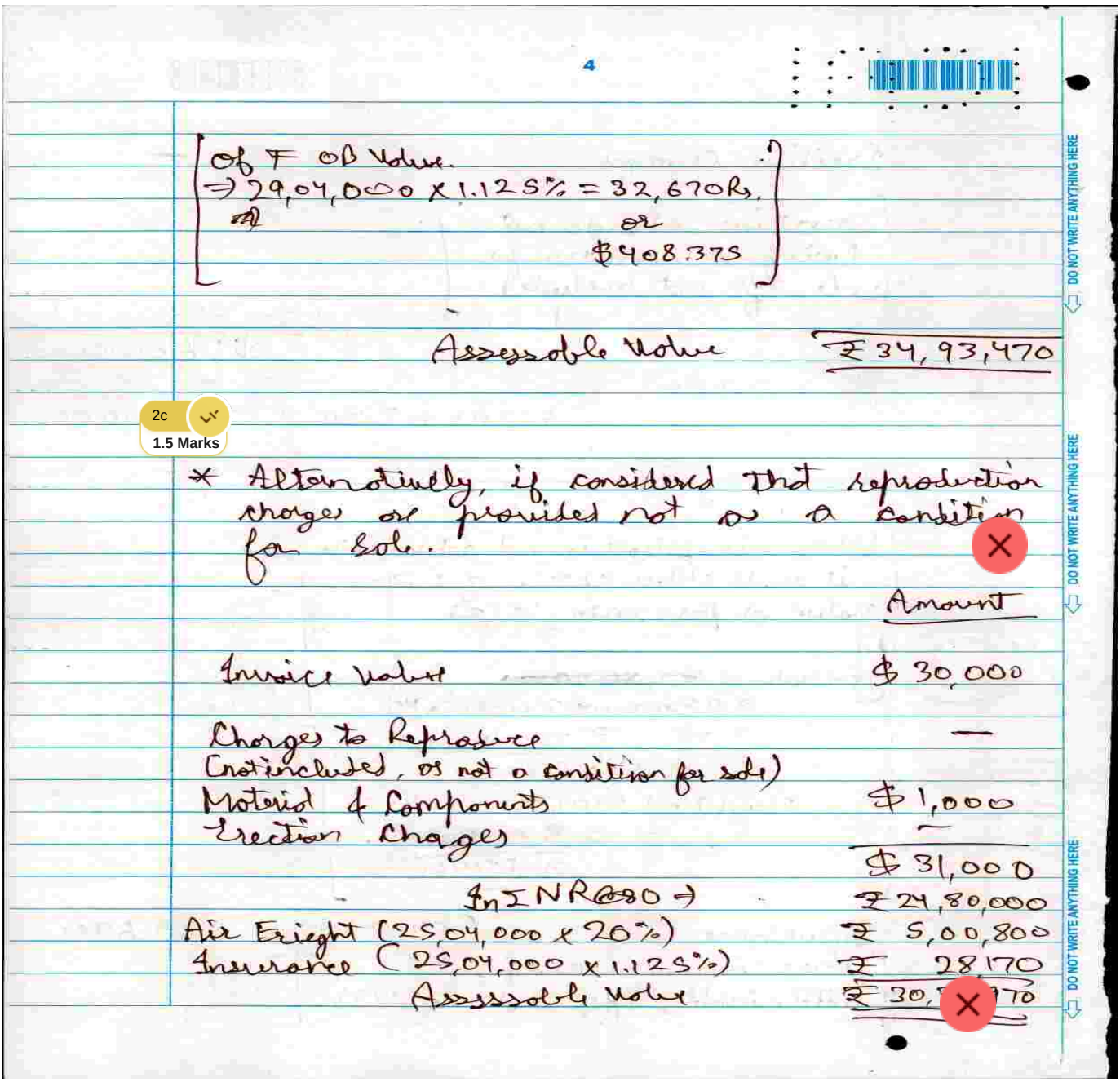
Insurance ($408.375) 32,670 ✗

Where insurance charges not determinable, they shall be 1.125% ✓

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Of ₹ of Value.
⇒ 29,04,000 × 1.125% = 32,670 Rs.
or
$408.375

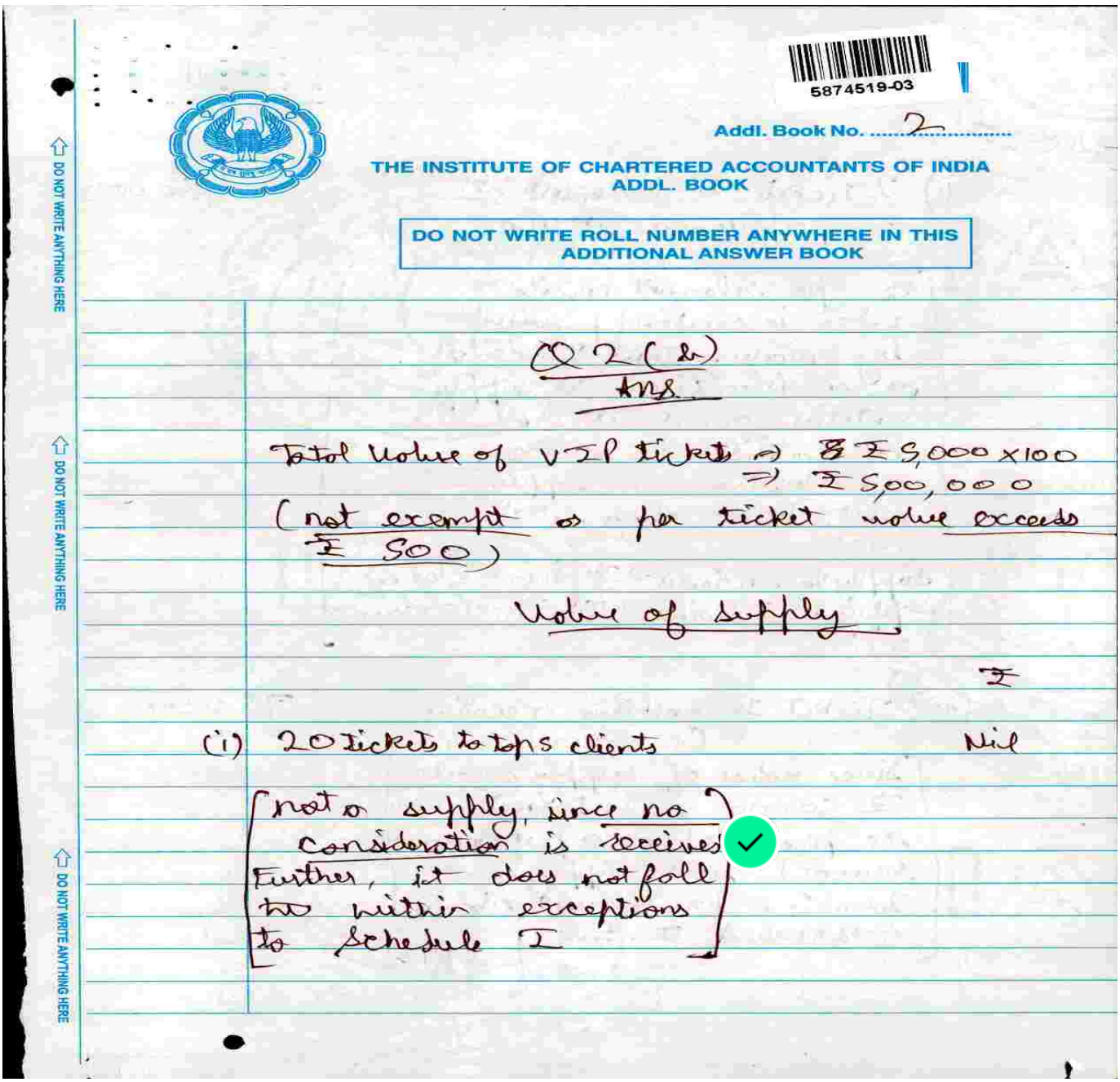
Assessable Value ₹ 34,93,470

2c 1.5 Marks

* Alternatively, if considered that reproduction charges are provided not as a condition for sale.

	Amount
Invoice Value	$ 30,000
Charges to Reproduce (not included, as not a condition for sale)	—
Material & Components	$ 1,000
Erection Charges	—
	$ 31,000
$ in INR @ 80 ⇒	₹ 24,80,000
Air Freight (25,04,000 × 20%)	₹ 5,00,800
Insurance (25,04,000 × 1.125%)	₹ 28170
Assessable Value	₹ 30,[illegible]70

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5874519-03

Addl. Book No. 2

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Q 2 (a)
KNS

Total Value of VIP tickets ⇒ ₹ 5,000 × 100
⇒ ₹ 5,00,000

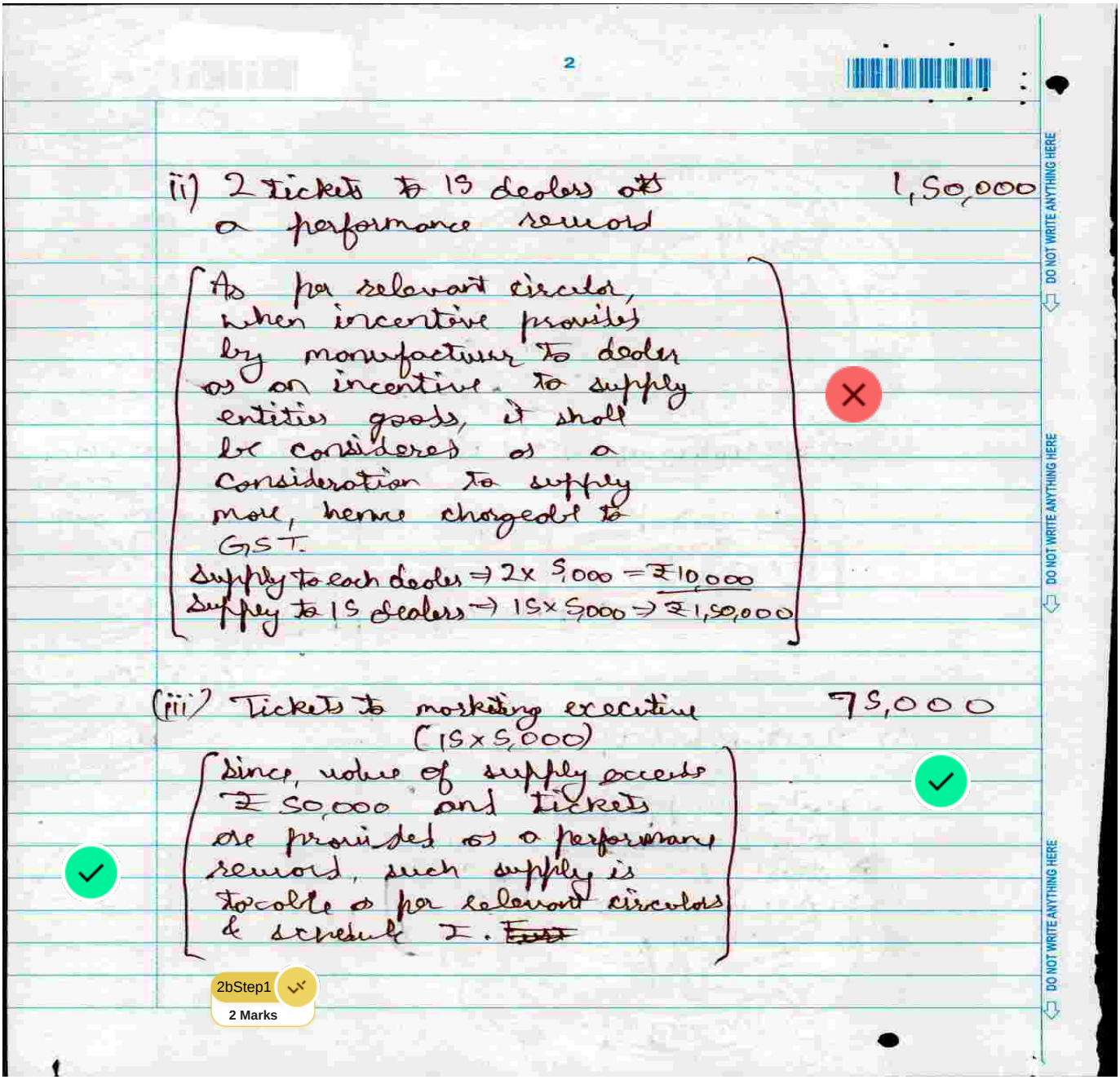
(not exempt as per ticket value exceeds ₹ 500)

Value of supply

₹

(i) 20 tickets to top's clients Nil

[not a supply, since no consideration is received. Further, it does not fall two within exceptions to Schedule I ✓]



2

ii) 2 tickets to 15 dealers on a performance reward — 1,50,000

As per relevant circular, when incentive provided by manufacturer to dealer as an incentive to supply entities goods, it shall be considered as a consideration to supply more, hence chargeable to GST.

Supply to each dealer ⇒ 2 × 5,000 = ₹10,000

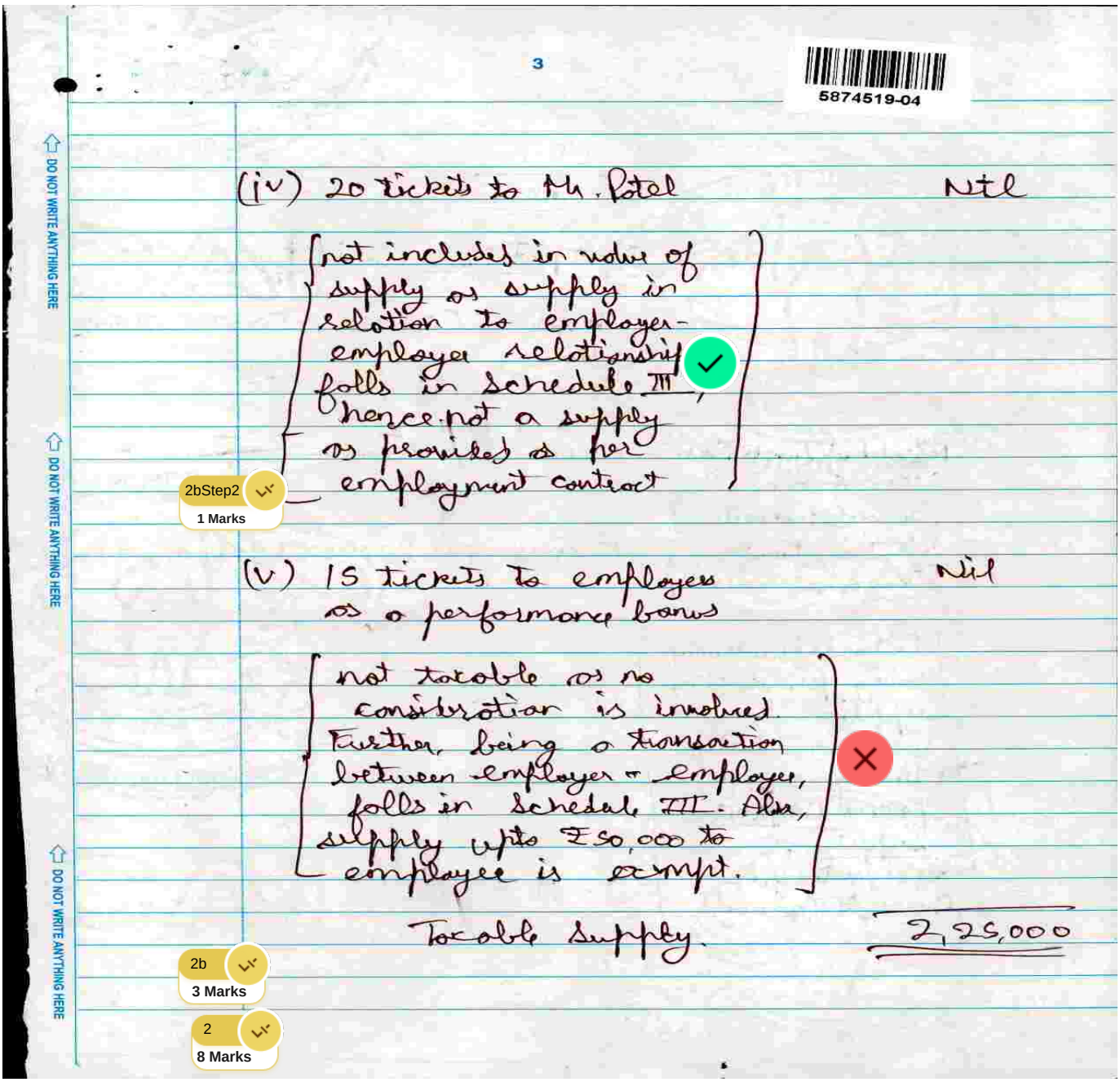
Supply to 15 dealers ⇒ 15 × 5,000 ⇒ ₹1,50,000

(iii) Tickets to marketing executive (15 × 5,000) — 75,000

Since, value of supply exceeds ₹ 50,000 and tickets are provided as a performance reward, such supply is taxable as per relevant circulars & schedule I. ~~Exempt~~

2bStep1 ✓
2 Marks

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(iv) 20 tickets to Mr. Patel — Nil

not includes in value of supply as supply in relation to employer-employee relationship falls in schedule III, hence not a supply as provided as per employment contract

2bStep2 — 1 Marks

(v) 15 tickets to employees as a performance bonus — Nil

not taxable as no consideration is involved. Further, being a transaction between employer & employee, falls in Schedule III. Also, supply upto ₹50,000 to employee is exempt.

Taxable Supply. 2,25,000

2b — 3 Marks

2 — 8 Marks

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Q 1

Ans

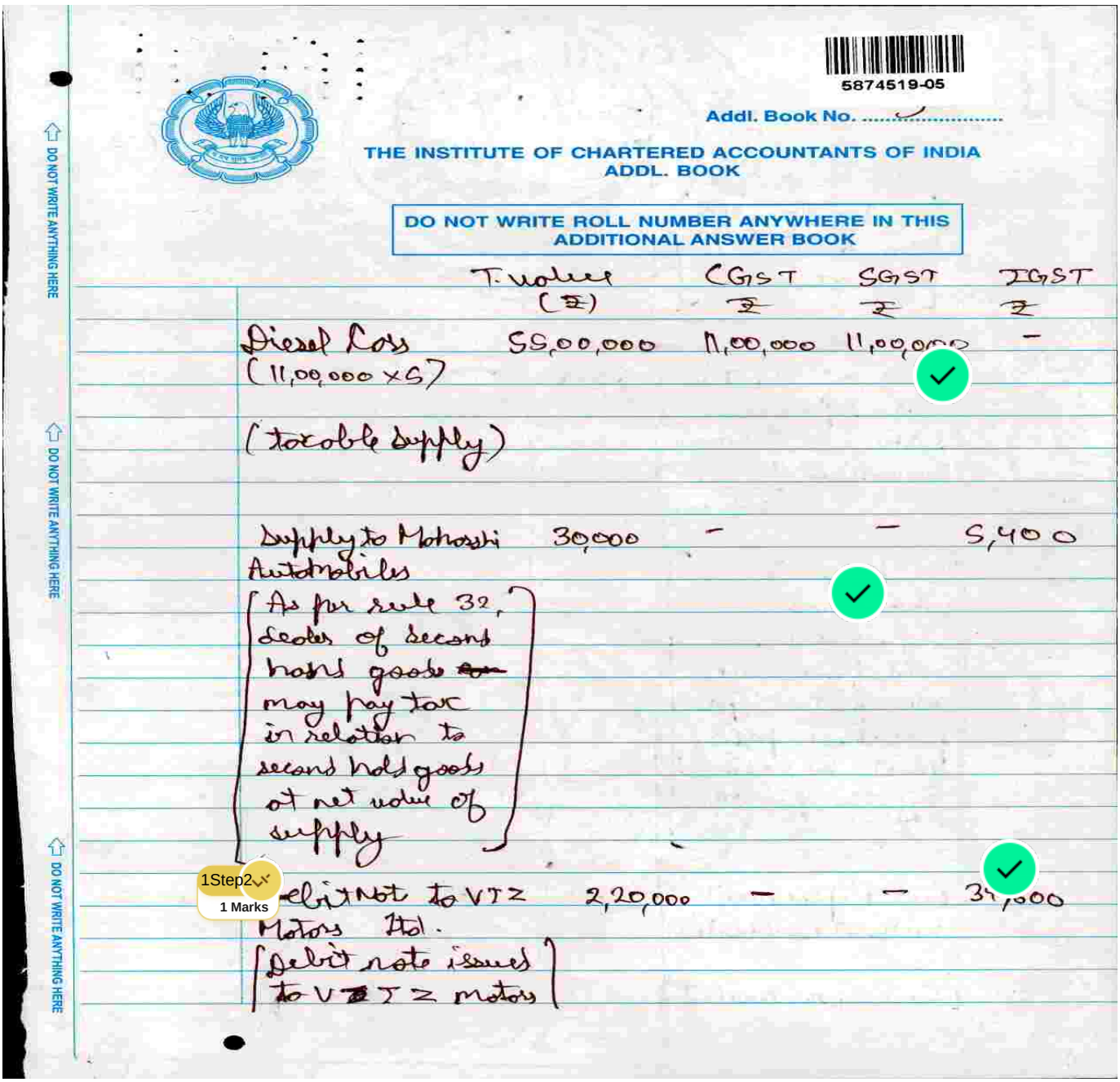
Output Tax liability

	Taxable Value ₹	CGST ₹	SGST ₹	IGST ₹
Petrol hatchback Cars (10 × 6,50,000) [taxable transaction]	65,00,000	~~5,85,000~~	~~5,85,000~~ 11,70,000	-
Electric Cars ([8,50,000 + 50,000] × 8)	72,00,000	1,80,000	1,80,000	-

[Extended warranty being provided by supplier along side car during time of supply, forms Composite Supply. Thus, value per car ⇒ ₹9,00,000]

1Step1
2.5 Marks

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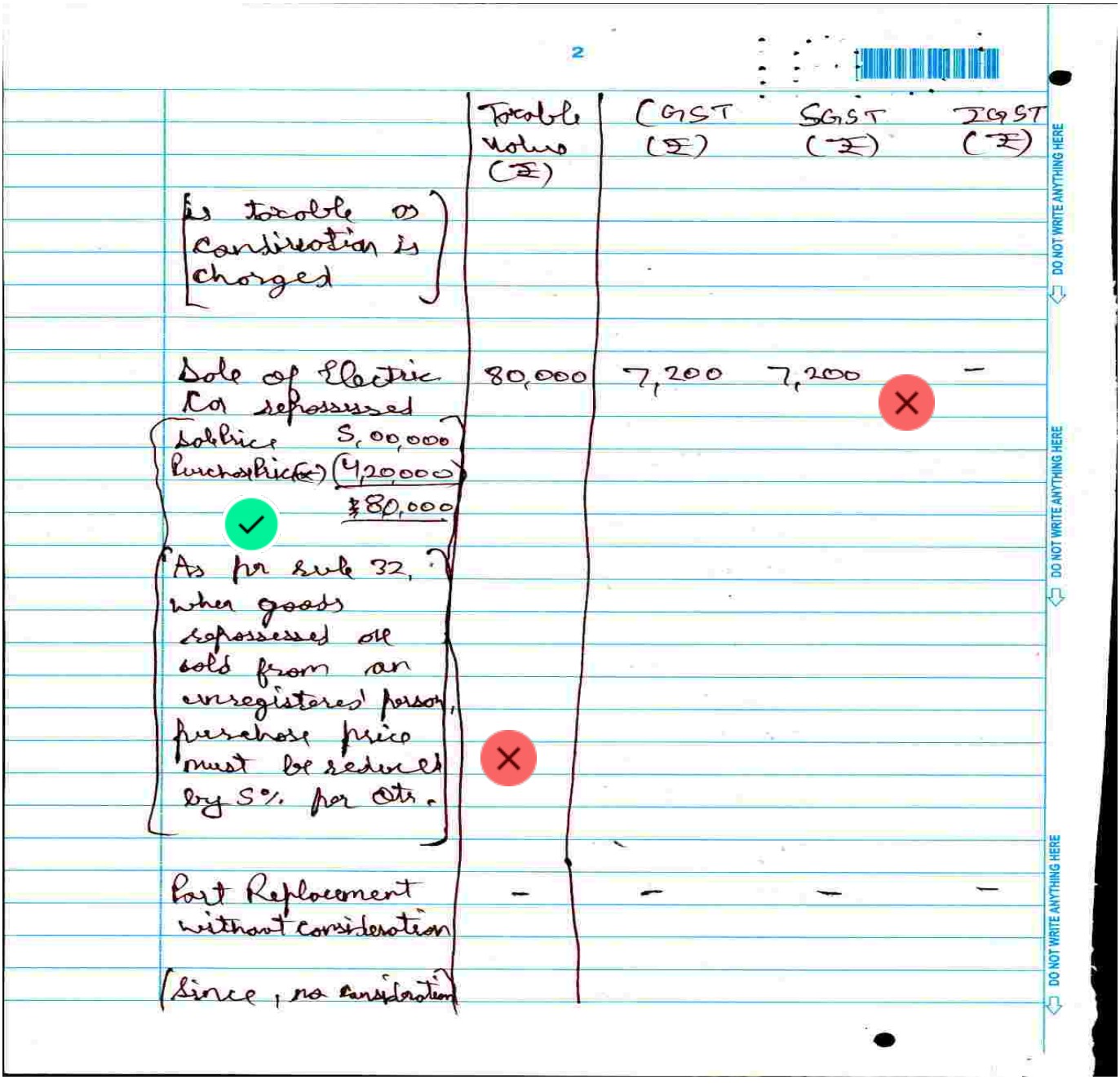
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	T. value (₹)	CGST ₹	SGST ₹	IGST ₹
Diesel Loss (11,00,000 × 5) (taxable supply)	55,00,000	11,00,000	11,00,000	-
Supply to Mahashi Automobiles [As per rule 32, dealer of second hand goods may pay tax in relation to second hand goods at net value of supply]	30,000	-	-	5,400
Debit Note to VTZ Motors Ltd. [Debit note issued to VTZ motors]	2,20,000	-	-	39,600

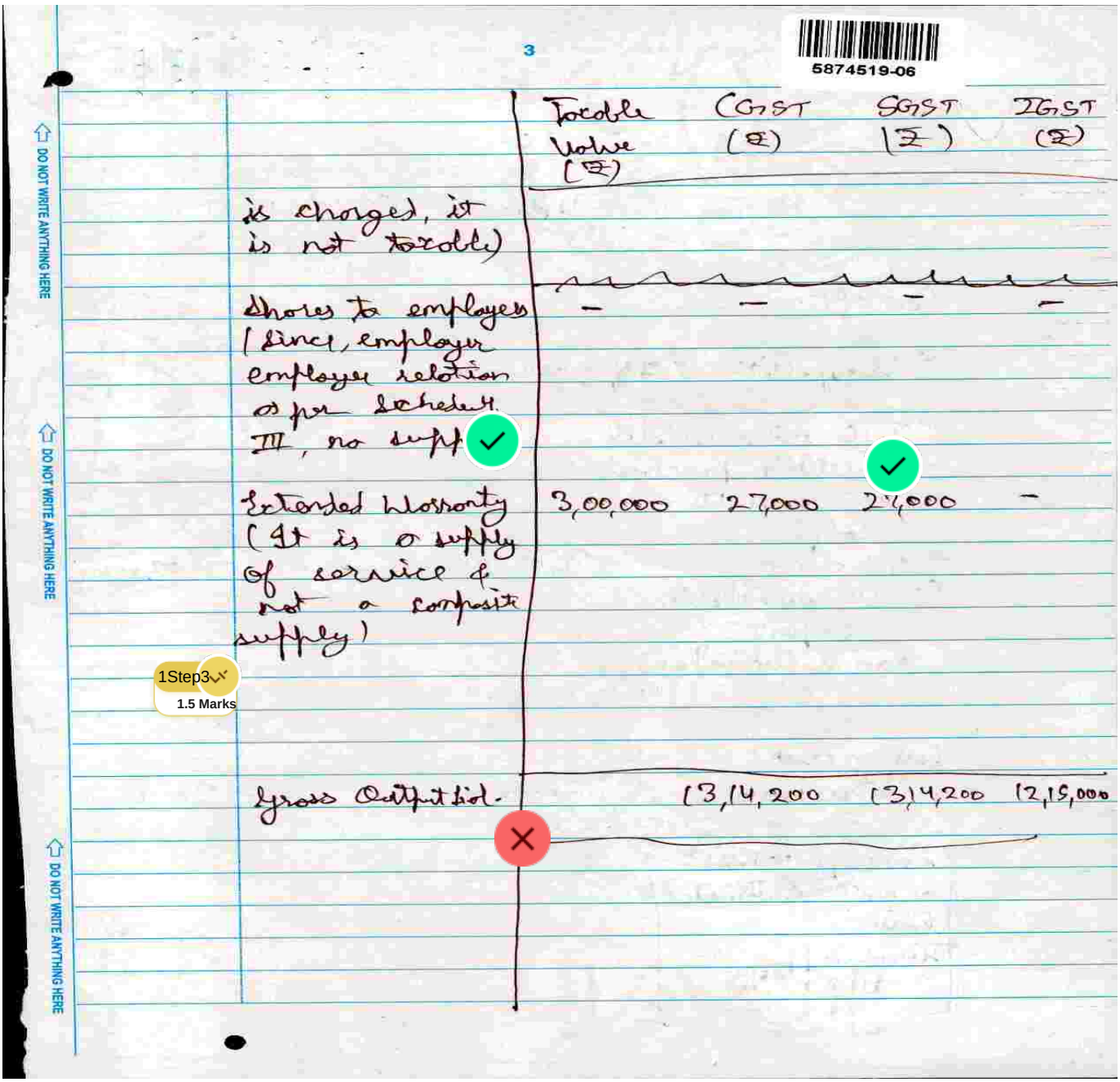
1Step2 ✓
1 Marks



2

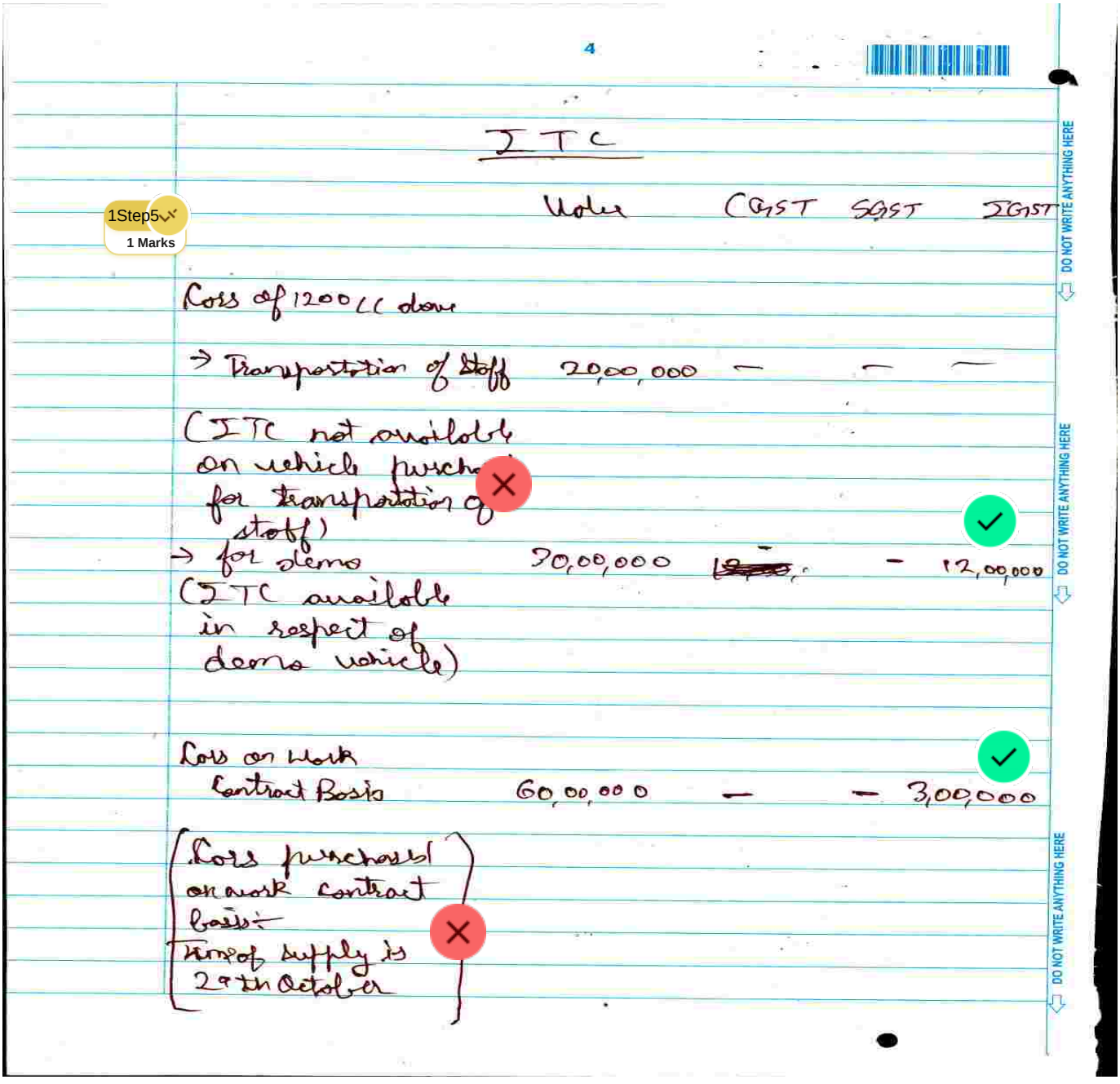
	Taxable Value (₹)	CGST (₹)	SGST (₹)	IGST (₹)
[is taxable as consideration is charged]				
Sale of Electric Car repossessed Sale Price 5,00,000 Purchase Price (4,20,000) ₹80,000 [As per sub 32, when goods repossessed are sold from an unregistered person, purchase price must be reduced by 5% per Qtr.]	80,000	7,200	7,200	–
Part Replacement without consideration [Since, no consideration]	–	–	–	–

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Taxable Value (₹)
CGST (₹)
SGST (₹)
IGST (₹)
is charged, it is not taxable)
Shares to employees (since, employer employee relation as per Schedule III, no supply
Extended Warranty (It is a supply of service & not a composite supply)
3,00,000
27,000
27,000
-
1Step3
1.5 Marks
Gross Output tot.
13,14,200
13,14,200
12,15,000
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Code:	FN5IT874519	**Total Marks:**	70
Subject :	05 Indirect Tax Laws	**Marks Obtained :**	48



4

ITC

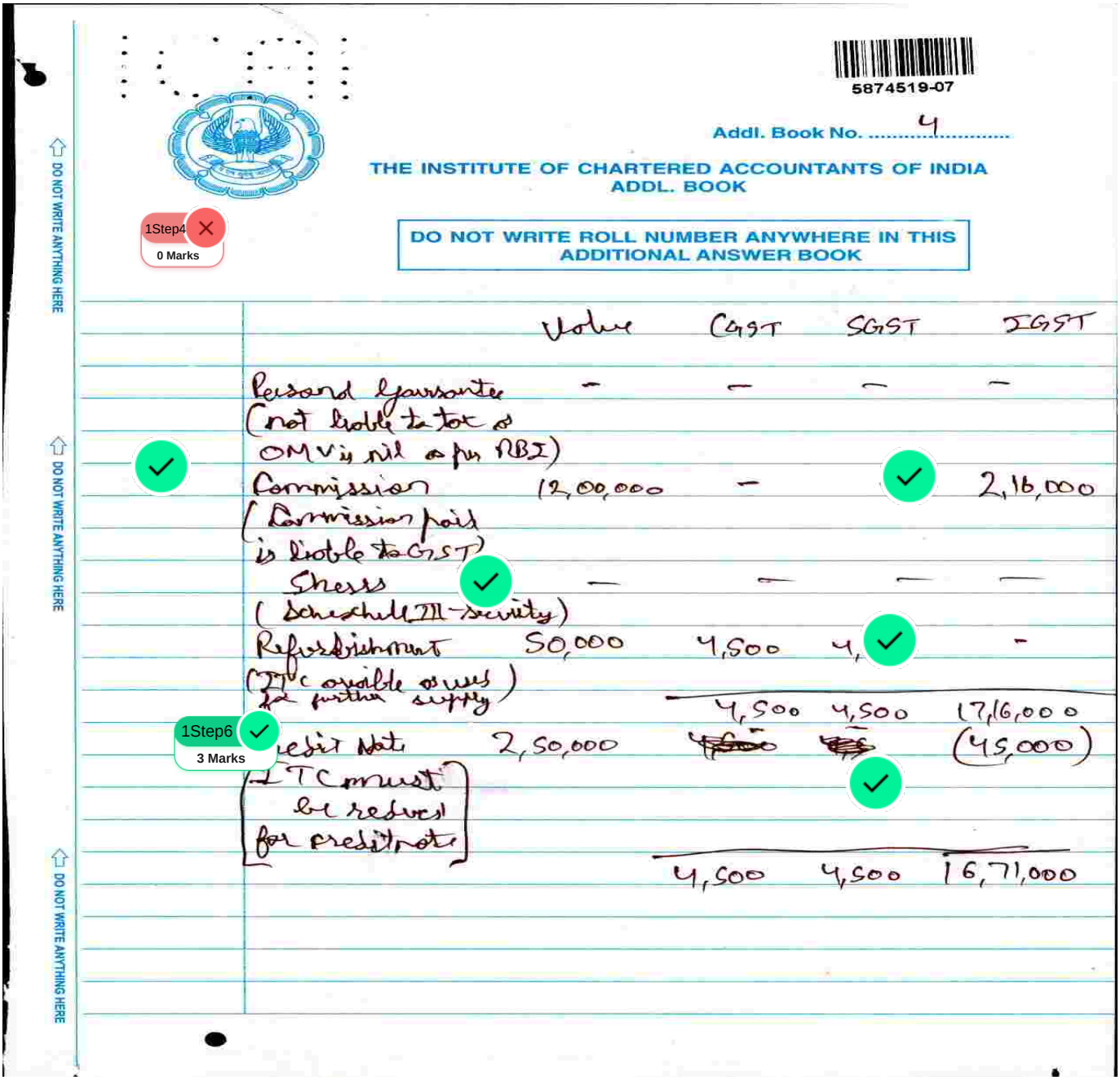
1Step5 ✓
1 Marks

	Value	CGST	SGST	IGST
Cars of 1200 CC above				
→ Transportation of staff	20,00,000	—	—	—
(ITC not available on vehicle purchased for transportation of staff) ✗				
→ for demo (ITC available in respect of demo vehicle)	70,00,000	~~[illegible]~~	—	12,00,000 ✓
Cars on Work Contract Basis	60,00,000	—	—	3,00,000 ✓
(Cars purchased on work contract basis ✗ Time of supply is 29th October)				

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Addl. Book No. 4

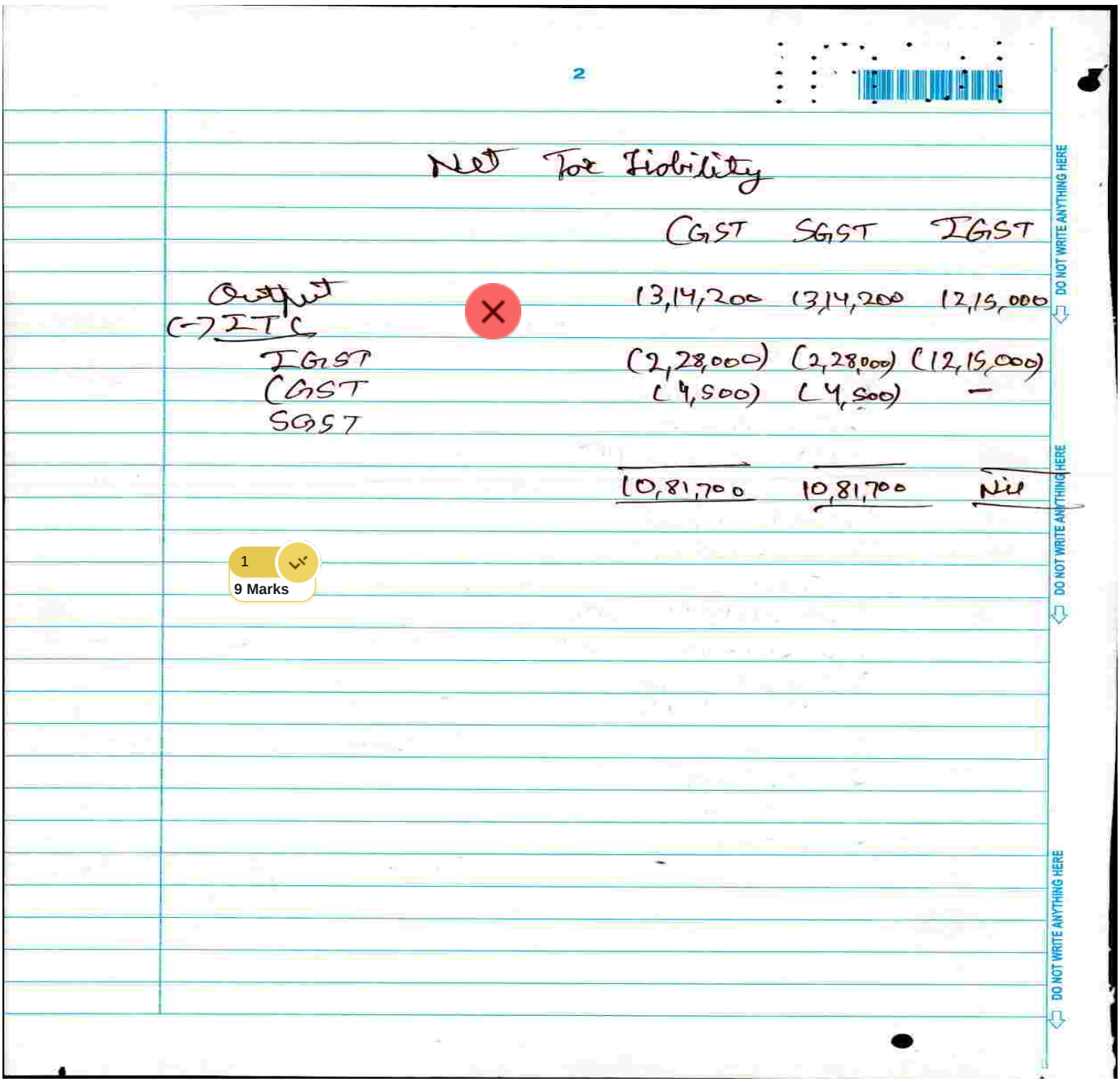
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1Step4 ✗ 0 Marks

	Value	CGST	SGST	IGST
Personal guarantee (not liable to tax as OMV is nil as per RBI)	–	–	–	–
Commission (Commission paid is liable to GST)	12,00,000	–	✓	2,16,000
Shares (Schedule III - Security)	–	–	–	–
Refurbishment (ITC available as used for further supply)	50,000	4,500	4, ✓	–
		4,500	4,500	17,16,000
1Step6 ✓ 3 Marks Credit Note (ITC must be reversed for credit note)	2,50,000	~~4,500~~	~~4,500~~ ✓	(45,000)
		4,500	4,500	16,71,000



2

Net Tax Liability

	CGST	SGST	IGST
Output	13,14,200	13,14,200	12,15,000
(-) ITC			
IGST	(2,28,000)	(2,28,000)	(12,15,000)
CGST	(4,500)	(4,500)	—
SGST			
	10,81,700	10,81,700	Nil

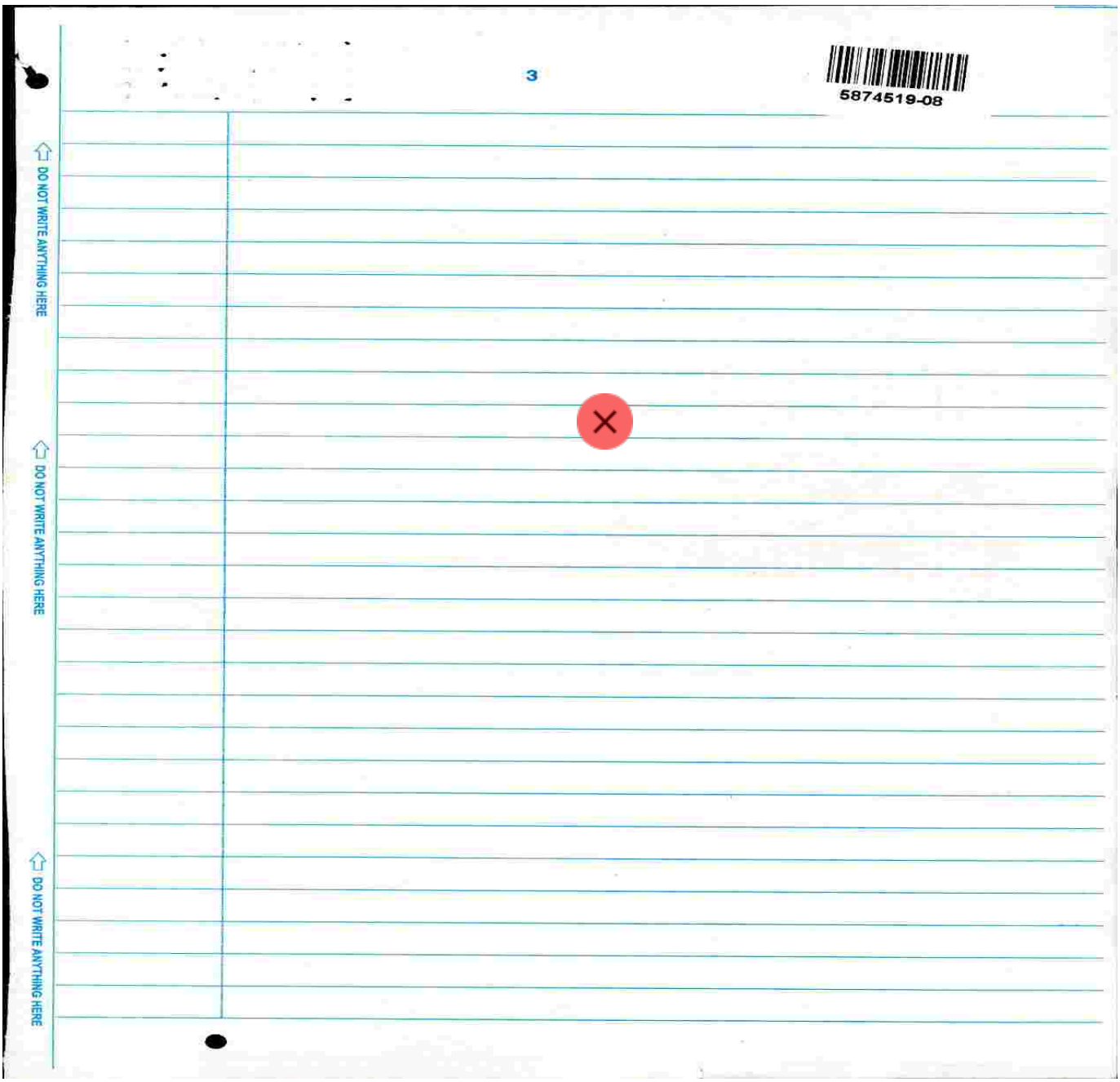
1 LY
9 Marks

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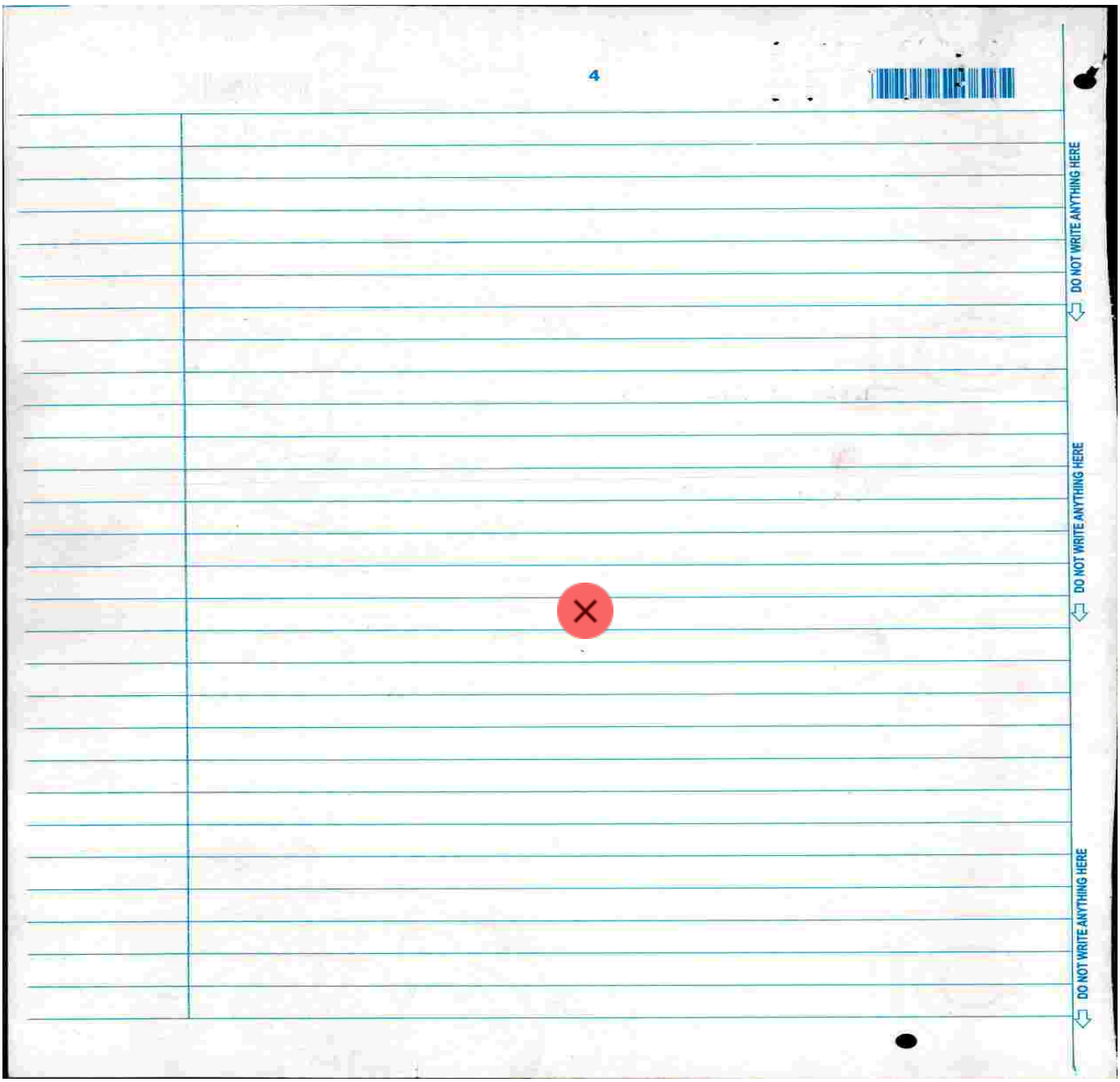
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Code:	FN5IT874519	**Total Marks:**	70
Subject :	05 Indirect Tax Laws	**Marks Obtained :**	48



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The Institute of Chartered Accountants of India

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Result Overview

Awarded Marks:48		**Max Marks:70**
Not Attempted	**Optional**	**M Marked**

Q1_Compulsory (Score: 9/14)

Question No	Awarded Marks	Maximum Marks	Status
1	9	14	M

Q2_Q6 (Score: 39/56)

Question No	Awarded Marks	Maximum Marks	Status
2	8	14	M
2a	3.5	5	M
2b	3	5	M
2c	1.5	4	M
3	11.5	14	M
3a	3.5	5	M
3b	4	5	M
3c	4	4	M
4	11.5	14	M

4a	4.5	5	M
4b	3	5	M
4c	4	4	M
5	8	14	M
5a	0	5	M
5b	4	5	M
5c	4	4	M
6	0	14	
6a	0	6	
6b	0	4	
6c	0	4	